

Bihar Inland Vessels Rules, 2013

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State of Bihar - Act

Bihar Inland Vessels Rules, 2013

BIHAR

India

Bihar Inland Vessels Rules, 2013

Rule BIHAR-INLAND-VESSELS-RULES-2013 of 2013

Published on 23 September 2013

Commenced on 23 September 2013

[This is the version of this document from 23 September 2013.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Inland Vessels Rules, 2013

Published vide Notification No. S-1/WT-403/2010 T Part-4712, dated 23.09.2013

Last Updated 11th February, 2020

No. S-1/WT-403/2010 T Part-4712. - In exercise of the powers conferred in sections 19, 19R, 29, 30, 30A, 52, 53, 54 and 67 of the Inland Vessels Act, 1917 (Act, No. 1 of 1917) read with section 21 of the General Act, 1897 (Act No. 10 of 1897) and in supersession of the rules defining the procedure to be adopted for the survey and registration of Inland Motor Vessels in Bihar State publication for survey in government Notification No. 2057 VIS-I-Com dated May, 21, 1935 in Bihar and Orissa Gazette, dated May, 29, 1935 and in Government notification No. 4058-VIS-5-Com dated September, 23, 1936 in the Bihar Gazette, dated September 30, 1936, Bihar Inland Steam Vessels Survey Rules 1935 and its amendment rule 1936 and Bihar Inland Steam Vessels Registration Rule 1951 for registration published in Government Notification No. IVS-4-1025/51L-190 dated October 1, 1951 in the Bihar Gazette, dated October 15, 1951,

the Governor of Bihar is pleased to make the following rules for their previous publication as required under section 74 of the said Act:-

Chapter - 1.0 Preliminary

1.

Short title and Commencement.

(1)

These rules may be called Bihar Inland Vessels Rules, 2013

(2)

It shall come into force with effect from the date of their publication in the official Gazette and shall apply on Inland Vessels plying in whole State of Bihar except as otherwise provided in these Rules.

(3)

(a)

An inland vessel shall not proceed on any voyage, or be used for any service unless she has a certificate of survey in force and applicable to such voyage or service.

(b)

Nothing in this para shall apply to any Inland vessel proceeding on a voyage during the interval between the time at which her certificate of survey expires and the time at which it is first practicable to have the certificate renewed.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context:-

(a)

"Act" means the Inland Vessels Act, 1917;

(b)

"Builder" means the person in overall control of design, construction, fitting and delivery of Vessels and includes a person who has engine for fitting on hull or shell, or who has constructed super structure on hull or shell, and also includes his representative;

(c)

"Candidate" means a candidate desirous of obtaining a certificate of competency under the I.V. Act 1917;

(d)

"Cargo" includes livestock;

(e)

"Central Rules" means rules made by the Central Government under the Act or the Inland Waterways Authority of India Act, 1985;

(f)

"Certificate of Competency" means a certificate of competency granted under these rules to act as an engineer, master, or engine driver, serang on board of inland Mechanically Propelled Vessel;

(g)

"District Magistrate" includes the Additional District magistrate, and if specially authorized in this behalf by the District Magistrate, includes any other Executive Magistrate;

(h)

"Dumb barge" means a vessels under Act without mechanical propulsion or pressure-oriented propulsion but towed by a vessel so powered;

(i)

"Examiner" means an Examiner appointed as such by the State Government under section 20 of the Act. National Inland Navigation Institute, Patna shall be as deemed examiner from the date of coming in force of these rules.

(j)

"Chief Examiner under section 21 of the act, means State Transport Commissioner, Bihar or any other officer authorized by the State Government.

(k)

"Form" means a form appended to these Rules;

(l)

"National Waterway" means a waterway, or part thereof, notified as such by the Inland Waterways Authority of India;

(m)

"Schedule" "Registering Authority" means an officer appointed as such under clause (b) of sub-section (1) of section 19B of the Act who may be Director, Deputy Director or any officer authorized by the Government;

(n)

"Schedule" means a Schedule appended to these Rules;

(o)

"Director Inland Water Transport" means the Director, State Transport Commissioner Dy. Director, Chief Surveyor, Bihar, Patna or any other person authorized in this behalf by the Director Inland water transport or Secretary Transport.

(p)

"Chief Surveyor" means the State Transport Commissioner, Bihar or any other officer authorized by State Government appointed under sub-section 4 of section 9 of the Act for issuing the survey certificate of the vessels.

(q)

"Approved Consultant" means a naval architect or a marine engineer qualified to certify the safe construction of hull/machinery of the vessel for the purpose of survey and dully approved by the competent authority.

(r)

"Approved classification society" means a classification society duly approved by Government or is a member/associate member of International Association of Classification Society (IACS)

(s)

"Convoy" means a group of vessels, floating equipment or raft towed or pushed by a mechanically propelled vessel

(t)

"Dangerous goods" shall have the meaning as provided in the merchant shipping act, 1958.

(u)

"mechanically propelled vessel" means every description of vessel propelled wholly or in part by electricity, steam or other mechanical power including dumb vessel towed by the mechanically propelled vessel and vessel propelled by outboard motor;

(v)

"Surveyor" means any such person or member of agency such as

1. Indian Register of Shipping (IRS),
2. international classification Society,
- 3.

Institute of Marine Engineers (Patna Chapter), or Company of Master Mariner of India (Patna Chapter), and

4.

Surveyor appointed by Principal National Inland Navigation Institute, Patna and appointed as per rule 4(a) by chief surveyor at such place as he considers necessary for the purposes of these rules.

(w)

"Inland Vessels" or "inland mechanically propelled vessel" means a mechanically propelled vessel which ordinarily plies on any inland water,

classified into

Category A

Category B

As per rule 3

(x)

"inland water" means any canal, river, lake or other navigable water

(y)

"passenger" includes any person carried in a mechanically propelled vessel other than the master, crew, the owner, his family and servants;

(z)

"state" means state of Bihar and "Government" means the Government of Bihar.

Chapter - 2.0 Survey of Inland Vessels

3.

(1)

Categorization of Vessels. - For the purpose of survey, inland vessels are categorized in to two groups

Category- A

(a)

Vessels driven with more than 300 HP on board engine.

(b)

Vessel with upper deck

(c)

Vessel with FRP hull having passenger capacity of more than 25

(d)

Vessels with more than 15m length.

(e)

Hover Craft and Hydrofoils.

Category- B

(a)

All mechanically vessels not included in Category A.

(b)

Non motorized barge/ vessels towed by mechanized vessels not included in category A.

(c)

All vessels driven with more than 25 HP engine but less than 300HP. (Except vessels as mentioned in rule no.-106 of this rule.)

(2)

Procedure of Survey & Construction

(a)

Category-A vessels are required to be built under the class survey of a Classification Society.

(b)

Category-B vessels are required to be built under inspection of Chief Surveyor who will be assisted by certified Naval Architects/ Marine Engineers holding 1st class certificate of competency for approval of drawing, survey and classification etc throughout all stages of construction and other occasions of survey.

(3)

Every application for survey of an inland vessel shall be made by owner or master of the vessel in Form-I along with a fee specified in rule 9 directly to the authorized surveyor or at any other such place notified by the IWT directorate within a period of fifteen days before from the date of taking delivery of such vessels, excluding the period of journey, who shall forward the application for survey to the concerned Chief Surveyor/ Dy. Director IWT

(4)

Upon receipt of an application under sub-rule (3), the surveyor shall fix the date and time at which the survey shall commence, and shall give a notice in Form-2 to the owner or master of inland vessels informing him the date and time so fixed and requiring him to make all necessary preparations for the survey. The notice shall be given at least seven days before the date fixed for the survey. A survey shall be made on any day except Sunday and holidays. On request of the owner or master of an Inland Vessel, survey may be made on Sunday or holidays on payment of additional fees as specified in this behalf in rule 12.

(5)

Place of survey will be Patna or any such place that may be notified in the Gazette by the State Government under clause (a) of sub-section (1) of section 4 of Inland Vessel Act, 1917. A surveyor's fees of Rs2000/- per day/visit, or any rate fixed by Director IWT from time to time, plus conveyance, boarding and lodging expenses of the surveyor for making survey shall be borne by the owner or master of the inland vessel.

(6)

If every part of the inland vessels is not ready for survey at the appointed date and time or if requisite preparation has not been made for the survey by the owner or master of the inland vessel, the surveyor may, for reasons to be recorded, fix some other date and time for survey.

(7)

If due to unavoidable reason the Surveyor is unable to remain present on the date and time fixed for survey, he shall send the earliest possible information to the owner or master of the inland vessel and shall fix some other date and time for the survey.

(8)

The owner or master of the inland vessel shall be liable to pay a penalty at the rate of rupees hundred per day if the application for survey is not made within the period specified in sub-rule (3):

Provided that, the Director Inland Water Transport may for valid and sufficient reasons to be recorded by him reduce such fine to a maximum of fifty per cent, thereof.

(9)

The survey of Inland Vessels shall be completed within one month from the date of the receipt of application for survey.

(10)

Where the survey cannot be completed within one month from the date of the receipt of application owing to no fault of the owner or master of the Inland Vessel, sufficient valid reasons for such delay shall be shown by the surveyor to the Chief Surveyor.

(11)

If it is proved that survey was delayed due to willful negligence of the owner or master of the Inland Vessel or his authorized representative a penalty equal to double of the survey fee for each completed month or part thereof shall be payable by such owner or master, as the case may be.

4. The surveyor should have following minimum qualifications.

(a)

Should be a Marine/ Mechanical/ Electrical Engineer having minimum 5 years of sailing experience after first certificate of competency and having obtained minimum Second class Motor/ Steam MOT Certificate, issued by Director General of Shipping, Government of India or equivalent international certificate, with minimum 2 years sailing experience after having obtained such a certificate or master mariner with 5 years of experience after having obtained master's certificate issued by Director General of Shipping, Government of India or equivalent international certificate. In case of surveyor being an agency, the concerned agency shall have personnel with above qualification on their panel/role.

(b)

The Surveyor shall survey the engine, boiler, all machineries, hull, equipments, passenger's accommodation, fire fighting and life saving equipment and determine the number of passengers and the nature and quantum of cargo which the vessel is fit to carry. The Surveyor shall also examine the certificate of the master, serangs, the engineer and engine driver and electrical operator on vessels or vessels having electrical machineries operating on 400 volt and above to ensure that the same are in accordance with the provisions of the Act and these rules. The surveyor shall also inspect the light and sound signals to ascertain that the light and sound signals are in good condition to prevent collision on waterways.

5.

(1)

The declaration of surveyor shall be given in Form-3 which shall be duly filled and signed by the Surveyor. It shall be sent within fourteen (14) days by the ship owner to such officer as notified the state Government under sub-section (1) of section 8 of the Act; else a charge as prescribed in form 5 for delay shall be levied.

(2)

(a)

If the surveyor finds any defect in the hull, machinery or equipment of the Inland Vessels, he shall, before refusing to give the declaration under section 7 of the Act intimate in Form-4 to the owner or master of the Inland Vessels or his authorized representative pointing out the defects and require him to make necessary repairs to make good the defects.

(b)

If the Owner/Master of a mechanically propelled vessel is dissatisfied with the survey report of first surveyor, an application from the Owner/ Master and payment of fees which shall be double of previous survey, the Director of Inland Transport/Chief Surveyor shall appoint two surveyors. Any declaration given by them or refusal to give declaration shall be final.

6.

(1)

A notice under clause (b) of sub-section (1) of section 9 of the Act shall be given in Form-5.

(2)

A Certificate of Survey under section 9 of the Act shall be granted in Form-6 for category A vessels or Form-7 for Category B vessels as the case may be. The owner or master of the mechanically propelled vessel, for which a certificate of survey has been granted, shall forthwith, on the receipt of the certificate, cause one of the duplicates thereof to be affixed and kept affixed so long as it remains in force and the [mechanically propelled vessel] is in use, on some conspicuous part of the [mechanically propelled vessel] where it may be easily read by all persons on board.

(3)

The certificate of survey shall not be in force:

(a)

after the expiry of one year from the date thereof; or

(b)

after the expiry of the period (if less than one year) for which the hull, boiler, engines or other machinery, or any of the equipments of the mechanically propelled vessel to which the certificate relates have been stated in the certificate to be sufficient; or

(c)

after notice has been given by the Government of Bihar to the owner or master of the mechanically propelled vessel that the Government has cancelled or suspended it.

(4)

The certificate of survey shall not be in force in any State by virtue of any endorsement in respect of that State, after notice has been given by the State Government of Bihar to the owner or master of a mechanically propelled vessel that Government has cancelled or suspended the endorsement.

(5)

The certificate of survey or any endorsement thereon made under section 10A may be suspended or cancelled by the Government of Bihar if the Government has reason to believe :-

(a)

that the declaration by the surveyor of the sufficiency and good condition of the hull, boilers, engines or other machinery or of any of the equipments of the mechanically propelled vessel has been fraudulently or erroneously made; or

(b)

that the certificate has otherwise been granted upon false or erroneous information; or

(c)

that since the making of the declaration the hull, boilers, engines or other machinery, or any of the equipments of the mechanically propelled vessel have sustained any material injury, or have otherwise become insufficient.

(6)

On suspension or cancellation of endorsement made under section 10A on a certificate of survey, the Chief surveyor or the Director. IWT shall report the fact of suspension or cancellation, together with the reasons therefore, to the State Government which (or whose delegate) granted the certificate.

(7)

Under Section 54(c) of the Inland Vessel Act 1917 if vessel is not insured, the vessel cannot be used for cargo and/or passenger service.

7.

(1)

On the application made by the owner or his authorized representative or master of an Inland Vessels, as per procedure laid down in rule-3, the validity of a certificate of survey may be extended up to three months in Form-8 on the exigencies of the situation and if the surveyor recommends for the grant of the certificate for that period.

(2)

Dry docking period may be revalidated beyond four years or three years (for carriers of petroleum products) docking period, as the case may, be on exigencies of the situation and on application by the owner, or his authorized representative or master of an Inland Vessels as per rule 3 on deposit of full survey fees. The extension of validity of the docking period shall not exceed one year provided the surveyor recommends the grant of validity for that period and the Inland Vessel is surveyed by him.

(3)

If the vessels has been fully surveyed, but in the opinion of the surveyor the hull, equipment or machinery of the Inland Vessel are declared to be sufficient only for a specific period being less than one year, the full annual fees for survey shall be payable.

8.

(1)

Every Vessel to which these rules apply shall be subjected to the survey as specified below:-

(a)

before a new vessel is put in service (Initial Survey);

(b)

periodical survey once every twelve months including survey of hull, machinery and equipment.

(c)

four years dry docking survey, will include dry docking and detailed check on machinery wear and tear followed by satisfactory running trials;

(d)

additional surveys as and when necessary.

(2)

(a)

The survey before the Inland Vessel is put in service shall include a complete inspection of the hull, machinery and equipments. The survey shall be such as to ensure that arrangements, materials, scantlings of hull, boilers and their appurtenances, fire appliances and other equipments fully comply with the provisions of these rules. The survey shall also be such as to ensure that the workmanship of all parts of the vessel and equipments are in all respects satisfactory. Provided that the bottom of the vessel which has been surveyed during the construction need not be examined by a surveyor before the vessel is launched unless the surveyor has special reasons for considering it necessary.

(b)

The periodical survey shall include an inspection of the whole of the hull, boilers, machinery and equipments including the outside of the vessel's bottom in dry dock. The survey shall be such as to ensure that hull, machinery and equipments is in satisfactory condition and fit for the service for which the vessel is intended and that it complies with the requirements of these rules.

(c)

A survey either general or partial, according to circumstances, shall be made-

(i)

every time an accident occurs or a defect is discovered which affects the safety of the vessel;

(ii)

its efficiency or completeness of its equipment or whenever any important repair or renewal are made;

(iii)

whenever a request for extensions of certificates of survey is being considered.

(d)

The survey shall be such as to ensure that the necessary repairs or renewals have been effectively made and the material and workmanship of such repairs or renewals are in all respects satisfactory and the Inland Vessel is fit for the service for which it is intended. (3) After the survey of the Inland Vessel has been completed, no change shall be made without approval of surveying authority.

9.

For the purpose of a survey under these rules, the fee shall be payable by the owner or master of the vessel at the rates given in schedule IV.

Chapter - 3.0 Registration of Inland Vessels

10.

(1)

An inland vessel shall not proceed on any voyage or be used for any service unless it has a certificate of registration in force in respect thereof and granted under the Inland Vessel Act. Every application for registration of an Inland Vessel shall be made by the owner or master of the vessel to the Registering Authority in Form No.10.

(2)

When registration is required to be made at a place other than the place where the owner resides or carries business or if the owner is a company, at a place other than the place where the registered office of the company is situated, the application for registration shall be accompanied by a copy of the letter conveying the approval of registration from the State Government in which the owner resides or carries on business or the company has its registered office.

(3)

Every application for registration of an Inland Vessel shall be accompanied by a treasury Challan/Bank draft/ E-payment receipt showing the deposit of registration fees as mentioned in schedule 1.

(4)

While applying for registration of an Inland Vessel, the owner or master of the vessel shall furnish-

(a)

In the case of a newly built vessel, the builder's certificate and inspection certificate issued by the surveyor along with approved drawing of the vessel, documents relating to purchase of the vessel and document of its ownership.

(b)

In the case of renovated vessels, builder's certificate and inspection certificate issued by the surveyor along with approved drawing of the vessel and document of its ownership.

(c)

Copy of insurance certificate as per Chapter VI A, Section 54C of the Act.

11.

Registration of an Inland Vessel shall be made after survey of the vessel according to provisions of the Act and the rules and after production of certificate of survey.

12.

(1)

On receipt of an application for registration of an inland vessel, the Registering Authority shall give a notice in Form No. 11 to the owner or master of the vessel informing him the date and time for inspection of the vessel

(2)

It shall be the duty of the owner or master of the inland vessel to furnish such other information as may be required by the registering authority.

13.

Every inland vessel shall be marked permanently and conspicuously to the satisfaction of the registering authority as follows:-

(1)

Inland Vessel name shall be marked on each of its bows or at a suitable place on the superstructure and the inland vessels name and the name of its place of registration shall be marked on its stern on a dark background in white letters or on a white background in black letter which shall not be less than 15 centimeter in height and 2 centimeter in breadth.

(2)

Inland Vessels registration mark and the number denoting its registered tonnage shall be cut in on its main beam or any permanent bulkhead at a prominent place. The letters and figures of the registration marks shall not be less than 15cm. X. 10 cm.

(3)

Scale of draught marks shall be cut or welded in meters and decimeters, forward and rear of Inland vessels on both the port and the starboard side.

(4)

Inland vessels load line shall be cut or welded 300cm. long and 35mm. wide and shall coincide with maximum draught level of the inland vessel in fair weather conditions.

(5)

The maximum drought level mark line will be below deck level not less than 62 cm. The space as per requirement will be taken space all around the vessel on deck level.

14.

(1)

The registering authority shall after satisfying itself grant a certificate of registration in Form No. 12. It shall be the duty of

the owner or master of the inland vessel to produce it on demand by authority engaged in the enforcement of Act and rules. The certificate may also be in electronic form like smart card, in place of Form 12.

(2)

In special circumstances and for reason to be recorded in writing, the registering authority may grant a temporary pass to an inland vessel to enable it to ply during the period of the preparation of certificate of registration. The pass shall be in Form No. 13 and for the time and within the limit therein mentioned. The said pass shall be valid for 30 days and shall have the same effect as a certificate of registration subject to the conditions laid down in the pass.

15.

A book of registration shall be maintained by the registering authority in Form No.14 separately for each vessel registered and shall contain inter alia of the particulars given in the certificate of registration. It should be bound volumes with machined numbered pages. It can be in electronic form also.

16.

(1)

When the registered of inland vessel is altered so as not to correspond with the particulars relating to its tonnage and or description as shown in the book of registration, the onus of having the alteration recorded by the registering authority shall be on the owner or master of the inland vessel. The inland vessel shall be required to be registered if the registering authority so directs for reasons to be stated for such direction. The registering authority in deciding whether alteration will be recorded or whether the inland vessel should be registered a new shall be guided by the following considerations:-

(a)

Whenever any material alteration is made in the hull affecting the length or breadth or depth of the inland vessel or wherever there is alteration in the means of propulsion including addition or removal of an auxiliary engine the vessel shall require new registration.

(b)

Where the alteration consists merely of a change in the dimensions of close in space, the addition or removal of poop or deckhouse etc. or an allowance or disallowance or crew space of other similar change or an alteration from motor or steam crew to another motor or steam crew or reverse, the registering authority may allow such alteration to be recorded provided the stability of the vessel is not endangered thereby.

(2)

The owner shall report in Form No.15 to the registering authority of such alteration within one month of the alteration taking place mentioning therein the place where the vessel is registered and giving complete particulars regarding alteration made.

(3)

Fee as specified in the schedule-I shall be payable along with such application. The registration certificate of the inland vessel shall be surrendered by the owner along with other supporting documents for recording the alterations made or for registration if the registering authority so directs.

(4)

The registering authority shall, after satisfying itself that the inland vessels is not defective in hull, machinery or equipment and is river worthy, either issue a fresh certificate of registration or make such alteration in the certificate of registration in force as he may deem necessary. If the registering authority is of the view that a fresh survey should be conducted before issue of fresh certificate of registration, he shall direct the owner to apply for survey. Such survey shall be completed within one month.

(5)

In case the registering authority directs that the vessel be registered a new, the registering authority shall provisionally endorse the particulars of the alteration on the existing certificates.

17.

The owner or master of an inland vessel may apply for transfer of registration of his vessel in Form No.16. The application for such transfer shall be made to the registering authority where the inland vessel is registered along with fees as specified in schedule-I paid through treasury Challan/Bank draft/ E-payment receipt and a certificate of registration in respect of the vessel. If the transfer is to be made to another state, an authenticated copy of approval of the Central or State Government to such transfer shall be attached with the application. The registering authority on

receipt of such application and on satisfying himself that there is no ground of objection for such transfer, forward the same to the registering authority of the intended place of registration and shall return the certificate of registration to the applicant after making necessary entries in his book or registration and on the certificate.

18.

The application of transferring registration should be accompanied by a treasury Challan/Bank draft/ E-payment receipt showing that the fees as specified in the schedule-I. Such transfer of ownership shall be executed in Form No. 17. The deed of sale shall bear stamped fee as applicable. Every such deed of sale being duly executed shall be produced before the registering authority of the place where the inland vessel is registered and the registering authority shall thereupon enter in the registration book, the name of the transferee as owner/co-sharer of the inland vessel and shall endorse on the deed of sale that such entry has been made together with date and time. Within 30 days of transfer of ownership of the inland vessel/ entry of one of co-sharer, the transferor and transferee shall jointly make a report of the transfer to the registering authority within the local limits of whose jurisdiction the transferee resides or carries on business together with deed of sale and the treasury Challan/Bank draft/ E-payment receipt showing fees as specified in the schedule-1 have been paid. The registering authority on satisfaction that the documents are in order and that the inland vessel is not defective shall enter the particulars of the transfer of ownership of the vessel in the certificate of registration. The application for transfer of ownership shall be made in Form No.18 along with fees in treasury Challan/Bank draft/ E-payment receipt as specified in the Schedule-1.

19.

(1)

If at any time a certificate of registration is lost, the owner shall forthwith intimate the fact in writing to the registering authority by whom the certificate was issued and shall apply in Form No.19 to the said authority for issue of duplicate certificate. The application for duplicate certificate shall be accompanied by treasury Challan/Bank draft/ E-payment receipt indicating payment of fee at the rate specified in schedule-1. The mutilated certificate where a duplicate is sought because of mutilation shall also be deposited along with the application.

(2)

On receipt of such application, the registering authority shall issue a duplicate certificate with the word duplicate certificate and stamped boldly in red ink thereon.

(3)

If a duplicate certificate of registration has been issued upon the original having been lost and the original is subsequently found by the holder of the duplicate certificate, the original certificate shall be deposited forthwith by him to the registering authority.

20.

(1)

Any person preferring an appeal against the orders of the registering authority in respect of any matter relating to the registration of vessels shall do so in writing to the secretary to the state Government in Transport Department in the Performa in triplicate within thirty days from the receipt of the order of the registering authority accompanied by a certified copy of the order and treasury Challan/Bank draft/ E-payment receipt after depositing the fee mentioned in schedule-1

(2)

Upon receipt of memorandum of appeal in accordance with sub-rule (1), the appellate authority shall fix the time and place for hearing and shall not give less than fifteen days notice to the appellant, the registering authority and any other person interested in the appeal.

21.

(1)

The registering authority or any officer authorized by the State Government in this behalf may go on board, detain, or inspect any vessel at any hour for the purpose of satisfying himself that the provision of the Act, are being complied with. It shall be the duty and responsibility of the owner or master of the inland vessel to give all reasonable assistance to the inspecting officer in carrying out the inspection and to comply with any lawful directions that he may give.

(2)

In case any inland vessel is detained, a report of the circumstances in which the detention is ordered shall be sent to the registering authority and the Director of Inland Water Transport within forty eight hours.

(3)

The registering authority at any time, if satisfied that the vessel is in a condition not fit to ply in the Inland water, suspend the registration of the vessel and require the owner thereof to surrender forth with certificates of survey and registration in respect of that vessel. Before cancellation, the owner of the vessel should be given an opportunity to be heard. A registering authority may also suspend/cancel a certificate of registration if the vessel has been destroyed or rendered permanently unfit for service.

(4)

No certificate shall be suspended under section 19N of the Act without giving owner a reasonable opportunity of being heard in respect of the grounds on which the suspension of the certificate is proposed.

Chapter - 4.0 Certificate of Competency to Engineer and Engine Drivers of Inland Vessels

22.

Minimum Crew/Manning.

- The manning requirement under section 25,26,27 of the Act, requirement of the Master, Engineer, Engine Driver, crew, lascars, greasers for various categories of vessels to ensure safety of the passengers/cargo shall be prescribed by the authority/surveyor with due consideration of the operating conditions. No person who in the opinion of the surveyor/competent officer is not fully qualified or is inefficient shall be employed in any capacity in a vessel.

Every vessel registered under these rules shall have on board minimum following crew when in operation.

(1)

For vessels having inboard engine of 565BHP or more

(a)

one master with first class master's certificate

(b)

one engineer with engineer certificate

(c)

Two lascar

(d)

One greaser

(2)

For vessels having inboard engine of 226BHP but less than 565BHP

(a)

one master with second class master's certificate

(b)

one engineer with 1st class engine driver certificate

(c)

one lascar

(d)

one greaser

(3)

For vessels having inboard engine less than 226BHP .

(a)

one master with Serang certificate

(b)

one engineer with 2nd class engine driver certificate

(c)

one lascars

(d)

One greaser

23.

(1)

Examination for the grant of certificate of competency as inland vessel engineer, First class engine driver, second class engine driver, shall be held by the examiner at such place on such dates as may be published by examiner/ chief

examiner.

(2)

Every application for examination shall be filled and submitted in Form No-20 appended to these rules. The application so filled shall be received at the examination centre, before the date fixed for examination and shall be accompanied by-

(a)

attested copy of all the testimonials of both practical and theoretical experience of the candidate;

(b)

testimonials of good character from the employer,

(c)

receipt or challan showing that the amount of fee prescribed hereunder for such examination at which the candidate wishes to appear has been paid;

(d)

any certificate granted to the applicant under these rules;

(e)

two copies of recent bust photograph bearing the signature or thumb impression of the application on the back;

(f)

authentic proof of age;

(3)

No candidate shall be granted competency certificate unless he produces a medical certificate from a Registered Medical Officer that he is medically fit to carry out jobs and board inland vessels port crafts etc. and is not colour blind.

(4)

All candidates who, desires to appear for the examination of Competency as Engine Drivers and Engineers on Inland Vessels should have completed the four basic safety courses from National Inland Navigation Institute (NINI), Patna or from any other institute recognized by Transport Department Or approved by DG Shipping namely:

(i)

Elementary First Aid (EFA)

(ii)

Proficiency in survival techniques (PST)

(iii)

Personal safety and social responsibility (PSSR)

(iv)

Fire Prevention and Fire fighting (FPFF)

(5)

No candidate shall be granted Certificate of Competency as Engine Drivers and Engineers on Inland Vessels without passing the relevant examination of Competency specified hereunder.

(6)

A candidate who has served as an engineer of a vessel of the Coast Guard, Indian Navy or regular Army for a period of 5 years may be granted a Certificate of Service as Engine Drivers and Engineers on Inland Vessels, depending on the size of vessel served and on successful completion of relevant preparatory course including the four basic safety courses from National Inland Navigation Institute (NINI), Patna or from any other institute recognized by Transport Department or approved by DG Shipping.

(7)

A certificate of service so granted as per para (6) above shall have the same effect as a certificate of competency granted under these Rules. A certificate of Service so issued shall be issued in Form No. 30.

(8)

The Chief Examiner may if he thinks fit grant a license authorizing a person to act as master or engineer, as the case may be of any inland mechanically propelled vessels having engines of one hundred and seventy nominal horse-power or of such less nominal horse power as he may deem fit who is in possession of a first-class, engine-driver's certificate granted under these rules or an engine-driver's certificate granted or deemed to be granted under the Merchant Shipping Act, 1958, and has, by virtue of such certificate, served as an engine driver of an inland mechanically propelled vessels having engines of not less than seventy nominal horse-power for five years, for not less than two and a half

years of which period he has been the engine-driver of such vessel.

(9)

Any license granted under para (8) above shall remain in force only for such time as the person holding the same is in the possession of engine-driver's certificate of the nature referred to in para (8) above. Provided that the State Government may if it thinks fit, suspend, cancel or vary the conditions of any such licenses.

(10)

Every certificate of competency or service and every license granted under these rules shall be made in duplicate, and one copy shall be delivered to the person entitled to the certificate, or licence and the other shall be kept and recorded in the prescribed manner.

Qualifications for Certificate of Competency as Second Class Engine Driver of Inland Motor Vessels

24.

A candidate shall not be admitted to the examination unless he:-

(i)

is a citizen of India;

(ii)

has obtained 21 years of age on the date of examination;

(iii)

is able to read and write Hindi in Devnagri Script.

25.

Qualifications.

(1)

Such candidate shall have minimum qualification of eighth Class pass in English or Hindi from recognized and knowledge of regional language.

(2)

Such candidate other than for armed forces and paramilitary persons who desires to appear for examination of Competency as Second Class Engine Driver of inland vessel should have undergone Induction Training for Rating (Engine) at NINI or from any other institute recognized by Transport Department.

If the first service is after promulgation of these rules the training period of the respective course shall be considered as a service for the purpose of computing the total qualifying service.

(3)

Candidates should have attended preparatory Course for Second Class Engine Driver at NINI or at any institute recognized by Transport Department.

(4)

Such candidate should have served:-

(a)

for a period of not less than four years in the engine room of a motor vessel of not less than 226 brake horse power, of which period not less than one year must have been served as Assistant Driver or total of four years service as GP rating or rating (engine) of which at least six month shall be on Inland vessel plying in the Port/Inland Rivers of the State/candidate is appearing for the examination of 2nd Class Engine Driver; or

(b)

for period of not less than five years in the engine room of motor vessel having engines of not less than 85 brake horse power, or six years in the engine-room of a vessel having engines of not less than 40 brake horse power of which period not less than one year should have been as assistant driver or oilman. or

(c)

such candidate who has passed Matric Examination from recognized school board must have three years of service at or on Inland Waters, one year of which service must be as an Oilman or as an Assistant Driver and should have performed at least six months service on board the vessel plying in the Port/Inland Rivers of the State/candidate is appearing for the examination of 2nd Class Engine Driver.

(d)

Such candidates who have passed class X (Matric) examination from recognized board and undergone one year Inland Vessel Cadets Training at National Inland Navigation Institute (NINI), Patna shall have two years of services at sea or on

Inland waters, if the total service has been performed as Inland Vessel cadet apprentice with onboard vessel Structured Training Program verified in record book and approved or conducted by NINI and should have performed at least six months watch keeping service under qualified second class engine driver or First class engine driver or Inland vessel Engineer on board the vessel plying in the port/Inland Rivers of the Stated where the candidate is appearing for the examination of second class engine driver.

26.

Knowledge required.

- Such candidate shall:-

(a)

Satisfactorily pass an examination on the working of the various types of internal combustion engine and be able to name the principal parts of the machinery;

(b)

be required to know what attention is required by various part of the machinery, understand the use and management of the different valves, forks, pipes and connections and be familiar with the various methods of supplying air and fuel to the cylinder.

(c)

be required to be able to describe the chief causes which may make the engine difficult to start and explain how he would proceed to remedy any defects connected therewith; he shall be able to show that he understands the mechanism of the starting and reversing arrangements and that he is competent to deal with defects therein;

(d)

be required to be able to overhaul an engine, to adjust the working parts and to put the engine together again in good working condition. He shall be required to understand how to make good the result of ordinary wear and tear to the machinery and how to correct defects from accidents.

(e)

be required to be familiar with the nature and properties of the various fuel oils used in internal combustion engines. He must understand what is meant by flash point and

(f)

be required to know the dangers resulting from leakage from the fuel oil tanks and must understand the precautions to be taken against explosion. He shall also able to take the necessary precautions to guard against the escape of inflammable vapour from the vapouriser when the engines are stopped. He must know how to deal with fire if it break out.

(g)

Practical test.- The candidate shall also be able, if required to show his practical knowledge by actually working the engine of a motor vessel in the presence of the Examiner.

Qualification for Certificate of Competency as a First Class Engine Drivers of Inland Motor Vessels

27.

A candidate for a Certificate of Competency as First Class Engine Driver of an inland motor vessel shall be not less than 21 years of age, and have following minimum qualifications:-

(1)

Such candidates should possess Certificate of Competency/service as 2nd Class Engine Driver.

(2)

Such candidate, who desire to appear for examination of Competency as First Class Engine Driver of an Inland motor vessel should undergo Preparatory Course for 1st class engine driver in NINI or from any other institute recognized by Transport Department.

The training period of the respective course shall be considered as a service of the purpose of computing the total qualifying service.

(3)

Such candidate should have served:-

(a)

for a period not less than one year as Assistant Engine driver on regular watch on the main engines of a motor vessel of not less than 565 break horse power, while holding a Second Class Engine Driver's Certificate for a motor vessel; or

(b)

for a period of not less than 24 months as Assistant Engine Driver/Oil man with a Second Class Engine Driver's Certificate of motor vessel in charge of a watch on the main engine of a motor vessel of not less than 226 brake horse power; or

(c)

for a period of not less than three years in the engine room of a motor vessel of not less than 226 brake horse power of which period not less than one year should have been served as an assistant driver or oilman whilst holding a Second Class Engine Driver's Certificate for motor vessels; or

(d)

for a period of not less than 18 months with a Second Class Engine driver's certificate for motor vessels as driver in charge of the engine of a motor vessel of not less than 113 brake horse power.

28.

Additional qualification.

(1)

Such a candidate shall pass examination similar to that required by rule 26 for a Second Class Engine Driver's Certificate but of a more advanced stage.

(2)

Such candidate who desire to appear for examination of Competency of First Class Engine Driver should be able to overhaul an engine, to adjust the working parts and to put the engine together again in good working condition. He shall also be required to understand how to make good the result of ordinary wear and tear to the machinery and how to correct defects for accidents. He should know valve setting and injector setting of marine engine and be able to replace lines and head of engines with appropriate knowledge of torque and head of engine with appropriate knowledge for trouble shooting of engines.

Qualifications for Certificate of Competency as Inland Engineers of Inland Motor Vessels.

29.

Age.

- A candidate for a Certificate of Competency as Inland engineers of an inland motor vessel shall not be less than 21 years of age.

30.

Qualifications. - (1) Such candidates who desire to appear for examination of Competency of Inland Motor Vessel should undergo Preparatory course for Inland Engineer in NINI or from any other institute recognized by Transport Department. The training period of the respective course shall be considered as service for the purpose of computing the total qualifying service.

(2)

(a)

He should hold 1st Class Engine Driver Competency Service Certificated under the Inland Vessels Act, 1917 (I.V.Act 1 of 1917)

(b)

He should have worked for 18 months on a vessel having engines more than 226 BHP or he has to work more than 27 months on a vessel having less than 226 BHP while holding 1st class engine driver certificate issue under the Inland Vessel Act, 1917 (I.V. Act 1 of 1917).

(3)

Knowledge required: - Such candidate should:-

(a)

be able to write a legible hand and have a good knowledge of arithmetic up to and including vulgar and decimal fractions and square root. He shall also be able to work out questions relating to spring or level loaded safety and relief valve, consumption of oils and stores capacities of tanks to bunkers, speed of vessels and other similar problem and be to calculate suitable working pressures for air received of given dimensions and the stress per square inch on crank and tunnel shafts and other parts of the machinery when the necessary data are furnished;

(b)

be able to give a clear explanation of the principles on which oil, gas or other internal combustion of the principles on

which oil, gas or other internal combustion engine works, including the methods of ignition, to point out the difference between them and to show by means of illustrative sketches and otherwise, that he understands the details of the constructions of those in general use.

(c)

be familiar with the various methods of supplying air and fuel to the cylinders in the different types of engines, the constructions of the apparatus for carbureting, atomizing or gasifying the fuel, and the means for cooling the cylinders, pistons, etc.

(d)

have satisfactory knowledge of the process employed in the construction of internal combustion engines in the workshop and of the methods used in fitting the machinery on board a ship.

(e)

Know what attention is required by the various parts of the machinery and understand the use and management of the different valves, cocks, pipes and connections.

(f)

be able to state and describe the chief cause which may make the engine difficult to start and explain how he would proceed to remedy any defects arising there from. He shall also be able to show that he understands the mechanism of the starting and reversing arrangements and is competent to deal with defects therein.

(g)

understand how to make good the result of ordinary wear and tear to the machinery, how to test the fairness of shafting, etc. and how temporary or permanent repair could be affected in case of derangement or total breakdown.

(h)

understand the construction of the pressure gauge, barometer, thermometer and other instruments used in the engine room and the principle on which they work.

(i)

understand the construction and working knowledge of centrifugal bucket and plunger pumps and the principles on which they work.

(j)

the provisions of the I.V. rules for Life Saving, Fire Appliances and general discipline.

Chapter - 4.1 Certificate of Competency to Masters and Serang of Inland Vessels

30.

(1)

Examination for the grant of certificate of competency as inland vessel Master Class I , Master Class II and Serang shall be held by the examiner at such place on such dates as may be published by the examination centre..

(2)

Every application for examination shall be filled and submitted in Form No-20 appended to these rules. The application so filled shall be received at the examination centre before the date fixed for examination and shall be accompanied by-

(a)

attested copy of all the testimonials of both practical and theoretical experience of the candidate;

(b)

Testimonials of Good Character from the Employer.

(c)

receipt or challan showing that the amount of fee prescribed hereunder for such examination at which the candidate wishes to appear has been paid;

(d)

any certificate granted to the applicant under these rules;

(e)

two copies of recent bust photograph bearing the signature or thumb impression of the applicant on the back;

(f)

authentic proof of age;

(3)

All candidates who, desires to appear for the examination of Competency as Serang, Second Class Master and First

Class Master should have completed the four basic safety courses From National Inland Navigation Institute (NINI), Patna or from any other institute recognized by Transport Department or approved by DG Shipping namely:

- (i)
Elementary First Aid (EFA)
- (ii)
Proficiency in survival techniques (PST)
- (iii)
Personal safety and social responsibility (PSSR)
- (iv)
Fire Prevention and Fire fighting (FPFF)

(4)

No candidate shall be granted competency certificate unless he produces a medical certificate from a Government Medical Officer that he is medically fit to carry out jobs and board inland vessels port crafts etc. and normal colour vision and 6/6 vision in each eye, and is not colour blind.

(5)

No candidate shall be granted Certificate of Competency as Serang, Second Class Master and First Class Master without passing the relevant examination of Competency specified hereunder.

(6)

A candidate who has served as a master, or as an engineer of a vessel of the Coast Guard, Indian Navy or regular Army for a period of 5 years may be granted a certificate of service as a first-class master, second-class master or serang, depending on the size of vessel served and on successful completion of relevant preparatory course including the four basic safety courses from from National Inland Navigation Institute, Patna or from any other institute recognized by Transport Department or approved by DG Shipping.

(7)

A certificate of service granted as per Para (6) shall have the same effect as a certificate of competency granted under these Rules. A certificate of Service so issued shall be issued in Form No. 30.

(8)

The Chief Examiner may if he thinks fit grant a license authorizing a person to act as master or engineer, as the case may be of any inland mechanically propelled vessels having engines of one hundred and seventy nominal horse-power or of such less nominal horse power as he may deem fit who is in possession of a second-class master's certificate granted as per these rules and has, by virtue of such certificate, acted as master of an inland mechanically propelled vessels having engines of forty or more nominal horse-power for a period of not less than five years.

(9)

Any license granted under para (8) above shall remain in force only for such time as the person holding the same is in the possession of engine-driver's certificate of the nature referred to in para (8) above. Provided that the State Government may if it thinks fit, suspend, cancel or vary the conditions of any such licenses.

(10)

Every certificate of competency or service and every license granted under these rules shall be made in duplicate, and one copy shall be delivered to the person entitled to the certificate, or licence and the other; shall be kept and recorded in the prescribed manner.

31.

Qualification for Certificate of Competency as a Serang.

(1)

A candidate shall not be admitted to the examination, unless he-

(i)

is a citizen of India;

(ii)

has obtained 21 years of age on the date of examination;

(iii)

is able to read and write Hindi in Devnagri Script.

(2)

Qualifications. - A candidate for a Certificates of Competency as Serang shall have minimum qualification of eighth standard passed in English or Hindi or a regional language.

(3)

Candidates who, desires to appear for the examination of Competency as Serang should produce the Certificate of Preparatory Training Course from from National Inland Navigation Institute, Patna or from any other institute recognized by Transport Department.

The training period of the respective course shall be considered as a service for the purpose of computing the total qualifying service.

(4)

Candidates other than for armed forces and paramilitary persons ,who desires to appear for the examination of Competency as Serang should have undergone Rating Induction Training if the date of beginning of first qualifying service is after these rules comes in effect. The training period of the course shall be considered as a service for the purpose of computing the total qualifying service.

(5)

Such candidates should have four years of service at sea or on Inland Waters vessels having engine not less than 226BHP or for a period of five years on vessels having engine not less than 85BHP or for a period of six years of vessel having engine not less than 40BHP, , one year of which service shall be as helmsman or an Assistant Master (Deck) or Sukani and should have performed of at least six months service on board the vessel plying in the port/Inland Rivers of the State where the Candidate is appearing for the examination of Serangs or

(6)

Such candidates who have passed Matric examination from recognized board and have three years of services at sea or on Inland waters, one year of the service shall be helmsman or as Assistant Master or Sukani and should have performed at least six months service on board the vessel plying in the port/Inland Rivers of the State where the candidate is appearing for the examination of Serang. Or

(7)

Such candidates who have passed class X (Matric) examination from recognized board and undergone one year Inland Vessel Cadets Training at National Inland Navigation Institute (NINI), Patna shall have two years of services at sea or on Inland waters, if the total service has been performed as Inland Vessel cadet apprentice with onboard vessel Structured Training Program verified in record book and approved or conducted by NINI and should have performed at least six months watch keeping service under qualified serang or First Class Master or Second Class Master on board the vessel plying in the port/Inland Rivers of the State in which he is appearing for examination of serang. Or

(8)

Such candidates who have served in flood or water transport company of police, P.A.C. or other Paramilitary forces for 5 years or more.

(9)

The candidate appearing for the examination of Serang and shall be examined in the following subject:-

(a)

the rules of the road as regards both sailing vessels and mechanically propelled vessels, their regulation, lights, fog and sound signals:

(b)

the marking and use of the lead line and knowledge of the compass;

(c)

Management of a boat under oars or sail;

(d)

Steps to be taken in the event of vessel grounding;

(e)

Management of inland vessels under all conditions;

(f)

Management of inland vessels under tow or when towed

(g)

Partial questions on carriage of iron ore, coal, ODC, Petroleum Products;

(h)
the provisions of the I.V. rules for Life Saving, Fire Appliances, collision avoidance and general discipline.

(i)
The provisions of the rules with regards to carriage of passengers.

32.
Qualification for Certificate of Competency as a Second Class Master.

1. Age. - A candidate for a Certificate of Competency as Second Class Master of an Inland Vessel shall not be less than 21 years of age.

2. Qualifications. - (1) A candidate for Certificate of Competency as Second Class Master should hold certificate of Competency as Serang.

(3)
Such candidates who desire to appear for the examination of Competency as 2nd Class Master should undergo Preparatory Course of II Class Master at National Inland navigation Institute, Patna. or from any other institute recognized by Transport Department.

The training period of the respective course shall be considered as a service for the purpose of computing the total qualifying service.

(4)
Such candidates should have two years service as Helmsman of inland vessel having not less than 282 BHP or three years service as Serang of an Inland Motor vessel having less than 282 BHP. A candidate for certificate of Competency as Second Class Master shall be examined in the following subjects:-

(a)
Management of inland vessels under all conditions;

(b)
Knowledge of storm and distress signals;

(c)
Knowledge of the compass;

(d)
Knowledge of inland waters of NW-1, its anchorages, shoals, buoyage, beacons, lights and other such matters.

(e)
The rules of the road as regards to both, sailing vessels and mechanically propelled vessels, their regulation, lights, fog and sound signals:

(f)
The marking and use of the lead line;

(g)
Steps to be taken in the event of vessel grounding;

(h)
Management of inland vessels under tow or when towed or pushing

(i)
Questions on carriage of iron ore, coal, ODC, Petroleum Products, cement, fly ash, containers;

(j)
The provisions of the rules made by IWAI in respect of Life Saving and Fire Appliances and Conduct of Vessels.

(k)
The provisions of the rules with regards to carriage of passengers.

(l)
Knowledge of Loading Marks and Stability of Inland vessels.

(m)
Knowledge of Inland Vessel act and Relevant DG notices.

(n)
Use of GPS, DGPS, VHF, Radar, ARPA and Echo sounder for safe navigation of vessel to be demonstrated in Simulator.

6. No refund of fee permitted. - The fee which the candidate has paid shall not be refunded to him and on presenting himself, when entitled so to do, for re-examination for the higher grade of certificate, he shall be required to pay the full fee again.

33.

Qualification for Certificate of Competency as a First Class Master.

- 1. Age. - A candidate for a Certificate of Competency as First Class Master of an inland vessel shall not be less than 21 years of age.

2. Qualifications. - (1) A candidate for Certificate of Competency as First class Master should hold Certificate of Competency as Second Class Master;

(2)

Such candidate who desires to appear for the examination of Competency as 1st Class Master should undergo Preparatory Course for 1st Class Master in at national Inland Navigation Institute or from any other institute recognized by Transport Department.

The training period of the respective course shall be considered as service for the purpose of computing the total qualifying services;

(3)

Such candidate should have served:-

(a)

as Master of a Motor vessel of not less than 226BHP for a period not less than 27 months, while holding a Certificate of Competency as Second Class Master.

Or

(b)

as Assistant Master of a vessel of not less than 565 BHP while holding a Certificate of Competency as Second Class Master for a period of not less than 18 months.

(4)

Additional knowledge. - In addition to the knowledge required for the grades of Serang and Second Class Master, a candidate for certificated of Competency as First Class Master shall be examined in each of the following subjects:-

(a)

Knowledge of tide-tables and effect of currents;

(b)

Knowledge of hydrographic charts of National Waterway- 1;

(c)

Knowledge of handling twin screw vessels.

(d)

Writing of log books,

(e)

Knowledge of weather and waves.

(f)

Knowledge to be able to make use of weather reports issue for the areas;

(g)

Seasons and general weather of the area through out the year;

(h)

Knowledge of loading, Stowing, Securing, Carrying and Unloading of different types of cargoes.

(i)

Knowledge of Stability of vessels and effects on Grounding.

(j)

Knowledge of fire fighting appliances, light and sound signals, life saving appliances and their uses;

(k)

Knowledge of the provisions of the Inland Vessels Act, 1917 (Central Act 1 of 1917), and the rules framed there under;

(l)

Knowledge of IWA rules pertaining to terminals and ports.

- (m)
Knowledge of Kolkotta Port Rules and also Customs Regulations in so far as they are applicable to inland mechanical propelled vessels;
- (n)
Signaling, recognition of alphabet and numbers through the international Code of Flags, Morse and use of ensign flag;
- (o)
Knowledge of use of Mariner's Compass and Gyro Compass and find and apply the errors on the Compasses.
- (p)
Knowledge of the rules with regards to Prevention and Control of Pollution and protection of Inland waters and Coastal Areas.
- (q)
The provisions of the I.V. rules for Life Saving, Fire Appliances, collision avoidance and general discipline.
- (r)
Knowledge of the provisions of section 134, Chapters X, XI and XII of the Motor Vehicles Act, 1988 (59 of 1988) as applicable to the Inland Vessels.
- (5)
The candidate shall have successfully completed Inland Vessel Maneuvering Simulator course at National Inland Navigation Institute, Patna or from any other institute recognized by Transport Department.
- (6)
Every candidate shall pay the following examination fees to the examination centre for appearing at the examination as required under rule 30, which shall not be returnable -
- (1)
First Class Master/ Inland Vessel Engineer Rs. 2000-00
- (2)
Second Class Master/First Class Engine Driver Rs. 1600-00
- (3)
Serang/ Second Class Engine Driver Rs. 1000-00
Above fee can be revised by the Transport Department from time to time.
- (7)
A certificate of competency of 1st Class Master, 2nd Class Master and Serang of inland vessel shall be issued in prescribed Form.
- (8)
Duplicate of all certificates granted under these rules shall be recorded in the office of the Inland water transport, Patna.
34.
Grant of Certificate.
- 1. A person who has served as a master or engineer on a vessel of the Coast Guard, Indian Navy or Army for a period of 3 years shall be granted certificate of competency as serang, first class or Second class master or Inland vessel engineer, first class or second class engine driver subject to the following:
- (1)
Satisfactory completion of relevant preparatory course at NINI or from any other institute recognized by Transport Department.
- (2)
Satisfactory completion of four basic courses
2. A person who has served in flood or water transport company of police, P.A.C. or other Paramilitary forces for 3 years or more shall be granted license as boat handler subject to the following:
- (1)
Satisfactory completion of Boat Handler Course at NINI or from any other institute recognized by Transport Department.
- (2)
Satisfactory completion of four basic courses.
- (3)
A license, certificate of competency or service granted by the state government to a master or engineer shall be valid

throughout India.

4. Form and Validity of Certificate of competency

(1)

Certificate of Competency shall be issued in the appropriate forms

a.

Inland Vessel Engineer

Form 21

b.

First Class Engine Driver

Form 22

c.

Second Class Engine Driver

Form 23

d.

First Class Master

Form 24

e.

Second Class Master

Form 25

f.

Serang

Form 26

(2)

The validity of all competency certificates issued for the first time to the candidates who pass the Masters, Serangs, Engineers, Engine Drivers or Lascar's examination shall be for period of five years.

(3)

Master's, Engineer's, Engine Driver's, Serang's certificate of competency shall be renewed for five years at a time on expiry of their validity.

(4)

Application for renewal shall be made to the, at any examination centre with appropriate fees.

(5)

Any certificate not so renewed shall lapse, A lapsed certificate if not more than three years, shall be renewed after paying one extra fees and giving satisfactory reason for the same. After three years the certificate shall be renewed after undergoing oral examination and if found satisfactory the examiner may recommend for renewal of the license after paying one extra fees.

(6)

Whenever a master or serang, or an engineer or engine-driver, proves, to the satisfaction of the Chief Examiner that he has, without fault on his part, lost or been deprived of it, a copy of the certificate or license to which according to the record kept hereunder he appears to be entitled shall be granted to him and shall have the same effect as the original.

(7)

Any certificate granted or any endorsement made under this chapter may be suspended or cancelled by the Government of Bihar in the following cases, namely:-

(a)

if, on any investigation made under the IV Act, the Court reports that the wreck or abandonment of or loss or damage to, any vessel, or loss of life has been caused by the wrongful act or default of the holder of such certificate, or that the holder of such certificate is incompetent, or has been guilty of any gross act of drunkenness, tyranny or other misconduct, or

(b)

if the holder of such certificate is proved to have been convicted of any nonbailable offence, or

(c)

if the holder of such certificate is proved to have deserted his vessel or has absented himself, without leave and without

sufficient reason, from his vessel or from his duty; or

(d)

if, in the case of a person holding a certificate of competency or service and second-class master or serang, or as engine-driver, such person is or has become, in the opinion of the State Government, unfit to act as a second-class master or serang or an engine-driver, as the case may be;

(8)

Every person whose certificate is suspended or cancelled under this Chapter shall deliver it to the Chief Examiner.

(9)

State Government of Bihar or Chief Examiner may revoke any order of suspension or cancellation which it may have made under this Chapter to grant new certificate, or grant, without examination to any person whose certificate it has so cancelled a new certificate. A certificate so granted shall have the same effect as a certificate of competency granted under this Act after examination.

Chapter - 5.0 Protection of and Carriage of Passengers Inland Vessel

35.

The master or any employee authorized in this behalf by the owner or master of any inland vessel, may refuse to admit any person on the Inland Vessel as a passenger, -

(a)

if he has not paid his fare; or

(b)

if he is insane; or

(c)

if he is suffering from an infectious or contagious disease; or

(d)

if he is drunk and incapable of taking care of himself; or

(e)

if he is disorderly, or if he is otherwise in such a state or is conducting himself in such a manner, as to cause or likely to cause annoyance to other passengers; or

(f)

when the Inland vessel, or the part thereof to which such person seeks admission, already contains the maximum number of passengers which may lawfully be carried therein.

36.

(1)

No passenger shall, -

(a)

travel, or attempt to travel in an inland vessel without having previously paid his fare; or

(b)

travel, or attempt to travel in accommodation of a higher class than that for which his fare has been paid, or

(c)

travel beyond the place to which his fare has been paid without previously paying the additional fare in respect of the additional distance; or

(d)

use, or attempt to use ticket on any day for which such ticket is not available; or

(e)

take, or attempt to take luggage with him without having previously paid the freight, if any; payable in respect thereof.

(2)

Every passenger of an inland vessel shall, when required by the master or any person authorized in this behalf by the master or owner-

(i)

pay his fare, if not already paid,

(ii)

present his ticket for examination,

(iii)

deliver such ticket at or near the end of the journey.

(3)

No passenger shall alter or deface his ticket so as to render illegible the date or number or any other material portion thereof.

37.

(1)

No passenger shall take with him or keep on board an inland vessel:

(a)

any decayed meat, fish or vegetable, or any such other offensive article.

(b)

Any dangerous and explosive material.

(2)

No passenger on an inland vessel shall,-

(a)

obstruct or impede the master or any other officer of the Inland vessel in the discharge of his duties;

(b)

in any way obstruct or interfere with the loading or unloading of luggage or cargo;

(c)

damage, or attempt to damage the Inland vessel or any article on board thereof;

(d)

enter or leave to attempt to enter or leave, any inland vessel when such Inland vessel is in motion;

(e)

without lawful excuse, enter a compartment or place reserved for the use of another passenger or refuse to leave it when required to do so by the master or any other officer of the Inland vessel;

(f)

smoke or be in possession of a fire or light, in any part of the Inland vessel where smoking or the possession of a fire or light is not permitted by the master thereof;

(g)

be drunk and disorderly, or drunk and incapable of taking care of himself;

(h)

commit any nuisance or act of indecency or use obscene or abusive language;

(i)

without lawful excuse, molest or interfere with the comfort of any other passenger.

(3)

No male passenger on an inland vessel, knowing that a compartment or place has been reserved for the exclusive use of females, shall enter such compartment or place without lawful excuse, or having entered it, shall remain therein after being required by the master, or any other officer of the Inland vessel to leave it.

38.

The master or owner or any employee authorized in this behalf by the owner or master, of any inland vessel may make the following passengers leave the Inland vessel, namely:-

(a)

insane passengers, and their attendants (if any), if they have embarked without the special permission of the master, or of the authorized employee;

(b)

passengers suffering from an infectious or contagious disease, when they have embarked without the special permission of the master or owner or of the authorized employee;

(c)

passengers who are drunk and incapable of taking care of themselves;

(d)

passengers who are disorderly, or are otherwise in such a state, or are conducting themselves in such a manner, as to

cause or likely to cause annoyance to other passengers;

(e)

any passengers who have embarked in excess of the maximum number of passengers which may lawfully be carried in the Inland vessel or in the part of the inland vessel thereof in which they propose to travel; and

(f)

passengers who have not paid their fare.

39.

A person who has been refused permission to an inland vessel under rule 35 shall not embark thereon; and a person who is required under rule 38 to leave an inland vessel shall leave at such convenient time and place as the master/owner or authorized employee may direct:

Provided that any person who is refused admission under clause (e) of rule 38 to leave shall be entitled to have his fare refunded to him.

40.

Any passenger who, with intent to defraud, commits any breach of rule 36, and any person who commits any breach of rule 37, shall be punished with fine of rupees One thousand.

41.

(1)

Whenever any case of plague, cholera or other dangerous epidemic disease occurs on board in Inland Vessel, the master or serang, shall immediately:-

(a)

remove the patient, together with his bedding, drinking utensils and food, to a part of the deck at the extreme stern of the Inland Vessel, where he shall be segregated from the rest of the passengers by a purdah. In the case of plague, the clothing, bedding, and if considered necessary the baggage of the patient shall be disinfected immediately;

(b)

cause all excreta, vomit and urine which may have been discharged on to the dock by the patient, to be cleaned away with a solution of cyllin: and

(c)

report the case to the Sub-divisional or District Magistrate within whose jurisdiction the nearest ghat lies, and also to the Chief Medical Officer of the district.

(2)

Where such ghat is not at the headquarters of a sub-division or district, the report mentioned in sub-clause (c) of Sub-rule (1) shall be sent by the master or serang, as the case may be, by the most expeditious means available, to the next headquarters of a sub-division or district which the Inland vessel will touch.

(3)

If, when the case occurs, the Inland Vessel is lying at a ghat at the headquarters of a sub-division or district, or otherwise, when the Inland Vessel has reached the nearest ghat which is at such headquarters, the master or serang shall not move the Inland Vessel there from until permission has been given by the District Magistrate or Sub-divisional Magistrate as the case may be.

(4)

(a)

On receipt of the report mentioned in sub-rule (1) the Magistrate shall at once depute a Medical Officer to inspect and disinfect the Inland Vessel.

(b)

Such Medical Officer shall visit the Inland Vessel and if a suitable hospital is available, or if other satisfactory arrangements can be made for the patients treatment and segregation, shall bring the patient to land.

(5)

Where no such hospital is available, and no such arrangement can be made, the patient shall not be allowed to land, but the Medical Officer deputed under sub-rule (4) shall take steps to ensure the proper segregation of the patient on the Inland Vessel, and to satisfy himself that every possible precaution has been taken to prevent the spread of the disease.

(6)

The Medical Officer deputed under sub-rule (4) shall, in all cases, cause the deck cabins, latrines and any other part of

the Inland Vessel, while the patient has been, to be thoroughly washed down with a strong solution of cyllin, and all utensils which has been used by the patient, to be disinfected.

(7)

(a)

In case of death, the body of the patient shall be wrapped in a cloth soaked in a strong solution of cyllin, and made over to his relatives, friends, or where he is without relatives/ friends, to the police, who shall arrange for its disposal.

(b)

If they have not already been disinfected in accordance with the provisions of clause (a) of sub-rule (1) of rule 41 the clothes of the deceased (except those in the baggage), his bedding and all food in his possession shall be burnt, unless orders to the contrary are passed by the Medical Officer.

(8)

The Medical Officer deputed under sub-rule (4) shall ascertain the names and addresses of all members of the party accompanying the patient, and shall report them through the Sub-Divisional Magistrate to the District Magistrate of the district to which they are proceeding.

(9)

When the orders contained in these rules have been complied with, and the Medical Officer deputed under sub-rule(4) is satisfied that there is no reason further to detain the inland vessel, he may give permission to the master or serang to proceed on the journey.

(10)

The owner of every inland vessel shall be bound to keep on board each inland vessel, five liters of cyllin.

(11)

The patient may be permitted to land on the expiry of a period to be fixed by the Medical Officer deputed under sub-rule (4).

(12)

Any person committing a breach of any of the above rules shall be punished with fine which may extend upto rupees one thousand.

42.

(1)

Before an inland vessel proceeds on a voyage, its cargo and that of any float or floats which are intended to be towed, shall be safely towed away, and hay or any other inflammable material shall be properly stowed with tarpaulins or other sufficient protection.

(2)

Provisions of Section 50 and section 51 of the Act shall be displayed in some prominent place on an inland vessel.

(3)

Every person who takes any dangerous goods with him on board of an inland vessel shall, if required to do so, hand over the same to the master or owner or an authorized person by the master or owner of the inland vessel for safe custody.

(4)

No person shall use naked lights of any description in the hold or on the cargo deck of any inland vessel; and no closed light shall be used unless it is in the charge of an officer of inland vessel.

(5)

Fire stations at the inland vessel shall be assigned to the officers and crews.

(6)

No gunpowder or other explosive shall be carried unless it is in a suitably constructed magazine compartment; and no fire shall be permitted on board of Inland Vessel while gunpowder is being taken in or discharged.

(7)

Nothing in sub-rule (2) as to the delivery of dangerous goods to the master, or in sub-rule-(6) as to the carriage of gunpowder or other explosive in a magazine compartment, shall apply to the carriage of samples of explosive in the charge of an inspector of explosives.

(8)

It shall be the duty of the master or owner of every inland vessel to give affect to, and observe the above rules, and he

or an other person committing a breach of these rules shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend up to twenty thousand rupees or with both.

43.

Loading of cargo in Inland Vessel carrying passengers shall be regulated as follows:-

(1)

Stern wheel inland vessel with a length of hull of less than 36 meters when carrying cargo on deck or passengers, shall be fitted with :-

(a)

Shifting boards amid ships in a fore and aft direction in way of, and height at least level with, the cargo;

(b)

a substantial wire net or similar light division on the upper deck amidships in fore and aft direction at least 1.8 meter high.

(2)

In all other inland vessels carrying both passengers and cargo, all cargo, carried on deck shall be efficiently stowed to prevent it from shifting.

(3)

A space of at least 75 centimeters wide on each side of the cargo, and within the bulwarks, shall be kept clear as fore and aft passage way.

(4)

Any owner or master committing a breach of these rules shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to twenty thousand rupees or with both.

44.

Freeboard.

(1)

In case of passenger vessel when it is loaded with weight representing the full number of passengers and crew at 65 kg for each person and when all necessary fuel is on board the clear height of the side above water at the lowest point in not less than 38 cms for vessels 6 m in length or less and 76 cms for vessels 18 m in length and over. For lengths between 6m and 18 m in height shall be in proportion. The length shall be measured from the forward side of the stem to the after side of stem post and the clear side shall be measured to the top of the covering board if however a half deck is fitted the clear side shall be measured to the top of the side at side or to the top of gunwale whichever measurement gives the smaller free board. In decked boats the free board shall be measured from the top of the deck at side.

(2)

Vessels permitted to ply during foul season shall be required to have freeboard 1.5 times as of that calculated in sub rule

(1).

45.

(1)

In all cases in which an inland vessel has sustained damage from any accident, or other cause, affecting its efficiency, in any part of hull equipment, or machinery, the surveyor of the port where the inland vessel may be, shall go on board and ascertain the extent of the damage. In doing so, he will take care not to make any change in the position or condition of things on the board.

(2)

The accidental inland vessel shall be surveyed, and a report thereof shall be sent to the Registering Authority as early as possible.

46.

(1)

in cases of collision, the surveyor should examine the lights and screens of the Inland Vessel, and if the Inland Vessel, with which it has been in collision is within his district he should examine the lights of the Inland Vessel also, should forward to the Registering Authority examine in a separate report, a statement in respect of the size, condition, and place of its lamp and screens and whether in his opinion they are deficient.

(2)

The surveyors should be very careful in wording their report as to lights and screens as they may be used in evidence in

case taken into Court.

(3)

If, in consequence of any accident to an Inland Vessel, or any other reason, the surveyor considers it necessary to require the vessel to be taken into dock for the purpose of surveying the hull thereof, he may do so, but he is to be cautious never to exercise this power unless the circumstances of the case actually require it.

(4)

Unless directions to the contrary are given by the Registering Authority, the surveyor is to hold the certificate of the Inland Vessel during the time it is under repair, and for this purpose he is to require it of the master, unless the damage is such that in the surveyors opinions the certificate should be cancelled, in which case he should forward it to the Registering Authority with his report. In all cases of serious damage the certificates should be returned to the Registering Authority to be cancelled.

(5)

If the master or owner decline to give up the certificate the surveyor shall inform immediately to the Registering Authority, and the Director Inland water transport.

(6)

When the vessel is in every respect rendered efficient both in hull and machinery to the entire satisfaction of the surveyor, he is to put an endorsement on the back of the certificate if they have not been previously cancelled, to the effect that the damage has been made good so as to last for the period for which the certificate was granted, and return the certificate to the master or owner, or his agent, and allow the inland vessel to proceed. He is then to send to the Registering Authority a statement to the extent of repair that was necessary, and endorsement made on the certificate.

47.

In all cases in which a surveyor is directed by the Registering Authority to obtain from an owner or master a certificate that has expired, or has been cancelled or revoked, he is to apply for it without delay, and in the event of his application not being attended to, he is at once to report the case. A fine of two hundred rupees may be imposed on any owner or master who neglects or refuses to deliver such certificate when required to do so by the Registering Authority.

48.

Notwithstanding anything contained in these rules, the Director Inland Water Transport, by a general or a specific order, may direct the vessel owners, vessel builders or persons / passengers involved in any manner with vessel operation to add/ delete / amend certain technical specifications of vessels or of its operational aspects in order to enhance safety of vessel, monitoring of movement, passengers comfort and general regulation of the Inland Transport Sector.

Chapter - 6.0 Life Saving Appliances to be Carried on Board Inland Vessels

49.

Classification of vessel.

(1)

For the purposes of this Rule the inland vessels shall be classified as namely:

(a)

Class I - Passenger vessels and Ferry launches boats

(b)

Class II - Cargo vessels and vessels other than those falling under Class I, Class III, and IV.

(c)

Class III - Non-propelled vessels (Barges)

(d)

Class IV - Pleasure crafts adventure vessels

(2)

Required of vessels of Class I

(a)

Sufficient number of life rafts or buoyant apparatus to accommodate at least 50% number of passengers and crew on board.

(b)

One life jacket for 50% of passengers and crew on board.

(c)

Life jacket for child, for 10% of total number of persons certified to carry. For the purpose of this section, child means person below 30kgs.

(d)

At least four life buoys for vessels up to 25 meter length, six life buoys for vessel 25-45 meter length and life buoys more than 45 meter length. At least two of the life buoys shall be with self igniting light if the vessels navigate at night

(e)

Every vessels of Class I passenger capacity 150 shall have at least one life boat with minimum passenger capacity of ten persons. The boat shall be provided with necessary arrangement for launching. Boats are to be stowed on either side of the vessels if more than one boat provided.

(f)

Life boats plus Life rafts plus life jacket together to accommodate 100% of the passengers and crew on board.

(g)

All crew boat should posses sufficient training in rescue working addition to artificial respiration and first aid.

(h)

All boats have headlights search lights hand torches and emergency lanterns.

(i)

Boats should be sturdy and should maintenance standards rigid. The under water material should be sound, strong and river worthy. In small vessels one pair of ores should be kept in readiness for use in event of power failure.

(3)

Requirement for Vessels of Class II

(a)

Every vessel of Class II shall be provided with:

(i)

At least one life raft to accommodate all crew for vessel over 10 meters.

(ii)

One life jacket for each crew or persons on board.

(iii)

At least two life buoys for vessels upto 25 meter length and four life buoys for above 25 meter of which one shall be equipped with self igniting light if vessels navigate at night.

(b)

Life raft plus life jacket plus life buoys to accommodate 100% of the crew.

(4)

Requirement for vessels for Class III

Every manned vessel of class III shall be provided with,

(a)

At least two life buoys, one of which shall be equipped with self switching light if the vessels navigate at night.

(b)

One life jacket for every crew on board.

(5)

Requirement for Vessels of Class IV

(a)

Every vessel of class IV up to 10 meter in length shall carry life jacket for each person. Vessel above 10 meter shall carry sufficient life raft for all persons on board. For small vessels where buoyant apparatus could not be accommodated 100% buoyancy by way of life jackets and lifebuoys.

(b)

However all vessels of class IV shall carry at least 2 life buoys of which one shall be of self lighting type if the vessels navigate at night. For small vessels the buoyant apparatus could not be accommodated 100% buoyancy by way of life jackets and life buoys.

50.

Technical Requirement.

- Every life saving appliances provided as per provisions of these rules shall be of approved type and have proper

stowage as per the satisfaction of the surveyor

51.

Display of usage.

- On every vessel of Class I the list of saving appliances and instruction of their use shall be displayed at conspicuous places.

52.

Exemption.

- Vessels or class of vessels whose keel of which is at the corresponding stages of construction before coming into force of these rules may be exempted from compliance there with of the provision for carriage of life boats until one year after the date of commencement of these rules provided that adequate life raft in lieu are provided on board.

Chapter - 7.0 Inland Vessels and Firefighting Equipments

53.

This rule should apply to all vessels excepting

(1)

Vessels above 500 tons gross. These vessels shall be required to comply with requirements of Merchant Shipping (Fire Alliances) rule 1969 as applicable to ships on coastal voyages.

(2)

Hovercrafts: Requirements in respect of hovercrafts shall be specially considered by the competent officer.

(3)

Provided that these rules do not apply to the existing vessels for a period of 6 months from the date of publication of these rules or till their next annual survey whichever is early.

54.

Appliances to be carried.

- All inland vessels should be provided with the following type of fire appliances

(1)

Power Driven Fire Pump: In every vessel above 150 tons gross at least one.

(2)

Hand Operated Fire Pump: In every vessel exceeding 21 meters in length at least one.

(3)

Water services pipes, Hydrants, Fire houses: In every vessel required to carry a fire pump with water services pipe hydrants and fire houses so arranged that at least one powerful jet of water may be directed to any part of the vessel. Hoses shall not be less than 32mm in dia.

(4)

Plain Nozzles: One for every fire hose carried in accordance with these rules

(5)

Spray Nozzles: One for every fire hose carried in accordance with these rules.

(6)

Portable Soda Ash/ water type of fire extinguishers: One in each of the passengers spaces above the upper deck and with at least two such extinguishers in each of the crew spaces and of the passenger space below the deck. Provided vessels less than 15 meters in length need carry one such extinguisher.

(7)

Portable type of Fire Extinguishers: Atleast two in every machinery space.

(8)

Portable Dry Power Type Fire Extinguishers: Having atleast one in every vessel having a large electrical installation.

(9)

Fire Axe: At least one in every vessel exceeding 15 meters in length

(10)

Fire Buckets: Atleast one for each number of the crew with the minimum of two. Fifty percent of those buckets are to be fitted with lanyards. No vessels need carry more than 20 buckets.

(11)

Sand Box with scoop: In every vessel at least one in machinery and boiler spaces. Quantity of sand shall not be less

than 0.075 cubic meters.

(12)

Non Portable Foam Type Fire extinguishers. In case of motor vessels exceeding 30 meter length at least one. Capacity of such extinguishers shall not be less than 45 liters.

(13)

Smothering Arrangement. All fixed installation in all vessels having areas containing fuel oil installation shall be covered by smothering arrangements.

55.

Approval by Competent Authority.

- If in any case the inland vessel is unable to comply fully with the requirements set out as above, in all cases of vessel exceeding 45m in length, Or 150 ton gross, the appliances to be provided are to be referred to the competent officer for approval.

56.

Responsibility of Master/Owner.

(1)

The master of all inland vessels shall ensure that the vessel is provided with appliances and equipment for fire fighting and for protection from danger or explosion in accordance with these rules and that the crew of the vessel are well conversant with the use of these appliances.

(2)

If in any case an inland vessel is unable to comply fully with the requirements set out in these rules and in all cases of vessel exceeding 45 meter in length the Fire Appliances to be provided are to be referred to the competent officer for approval.

57.

Penalties.

- Any breach of provisions in these rules shall be punishable with Imprisonment for a term which may extend to 6 months or fine which may extend to 500 rupees or both.

Chapter - 8.0 Passenger Accommodation

[Application-This part shall apply to all vessels]

58.

Passenger Accommodation.

(1)

Area of each part of passenger space and the length of seats therein shall be measured and the lesser of the numbers given by area and by seating shall be the allowable number during fair season provided that in open vessels the allowable number of passengers is not to exceed two per 0.3 metre of length of the vessel and in no case to exceed 100.

(2)

Total number of passengers permitted to be carried during the foul season shall not exceed two third the total number allowed for fair season provided that vessels operating in sheltered waters such as creeks may be permitted to carry same number of passengers throughout the year.

(3)

Open Launches:

(a)

The forward extremity of the space available for the passenger accommodation is to be determined by the Surveyor, with due regard to accommodation is to be determined by the Surveyor, with due regard to the proper stowage of the anchor and cable and to any other necessary equipment in the bow of the vessel, and the length shall be measured from this point to the foreside of the bulkhead separating the machinery space from the passenger space.

(b)

If the machinery is placed amidships, and additional space is available for passengers between the after bulkhead of the machinery space and a position near the stem of the vessels, to be determined by the Surveyor as suitable having due regard to the steering arrangements and fuel tank space, such shall also be considered for accommodating passengers. The breadths are to be measured at suitable intervals to the back of the side benches or to the inside of gunwale or to

the inside of the half deck(where fitted) whichever measurement is least.

(c)

The space abreast of the machinery space may be included in the passenger measurements if the engine is enclosed by a casing of longitudinal bulkheads and if the distance between the sides of the casing or bulkheads and the back seats is at least 0.9m.

(d)

The number of passenger allowable by area shall be found by dividing by 0.36 the area in square meters of the clear space measured as above. Allowance shall be made for the crew and baggage in the area measurements (15%). The number allowable by seating shall be found by dividing the length in meter of each continuous fixed seat by 0.45.

(e)

Seating on buoyant apparatus shall be computed separately.

(4)

Decked Launches

(a)

The forward extremity of the space available of the space for the passenger accommodation shall be determined for passenger accommodation shall be determined as above for above for open launches, and the clear area of this space is to be obtained by deducting all encumbrances such as skylights, companions, machinery casings, navigating spaces, life boats and ventilator.

(b)

The maximum number of passengers that may be allowed shall be ascertained by using the divisor 0.56 for the area of deck in square meter of the saloon or cabin floor below deck. Only one saloon or cabin floor below deck. Only one saloon below deck shall be included in passenger measurement, except that where the vessel has an appropriate standard, except that case more than 250 passengers shall be allowed.

(1)

In all vessels the seating must be so arranged that there will be no serious obstacle to prevent a person from passing forward and aft quickly in case of emergency.

(2)

No space within 0.5m of entrance to any ladder way, wash place or lavatory shall be included in the space measured for passengers.

(3)

Vessels engaged in carrying large number of passengers shall have a strong barrier constructed on each deck.

(5)

The provision regarding freeboard shall take precedents with regard to calculation or asserting of any issue/ matter related to overloading of the vessel.

Chapter - 9.0 Stability

[Application- This part shall apply to all vessels.]

59.

Stability.

(1)

An inclining experiment shall be carried out to determine the elements of stability. Unless particulars of position to transverse met centre at various drafts are available the experiment shall be carried out with the vessel loaded with weights to represent the fully laden condition.

(2)

Calculation showing the transverse met acentric height and the angle of heel which would occur with two third of passengers distributed on one side of heel which would occur with two third of the passengers distributed on one side of the vessel and one third on the other side requires approval of the surveying authority. Each passenger shall be represented by a weight of 65kgs.

(3)

In decked vessels the passengers shall be taken as congregated at 0.27 sq meter each on upper most deck or decks to which they have access and the center of gravity of the passenger at 0.75 meter above the deck.

(4)

In open vessels the center of gravity of passengers shall be taken at 0.3 meter above the seat.

(5)

In no case shall the surveyor certify a vessel for any number of passengers unless he is satisfied with the vessel has sufficient stability and free board to carry that number safely.

(6)

Stability of hovercrafts shall be specially considered.

(7)

Initial GM must be least 0.15 meter.

Chapter - 10.0 Anchors and cables

Application- This part shall apply to all vessels.

60.

Anchors and cable.

(1)

Every inland vessel of less than 15m in length shall be provided with at least one anchor and chain cables.

(2)

Every inland vessel of 15m and more in length shall be provided with at least two anchors and chain cables.

(3)

Every vessel exceeding 100 tons shall be provided with anchors and cables as specified by the Surveying Authority in each case. Provided that the anchors and cables complying with Classification Society requirements will ordinarily be accepted.

61.

Echo sounder.

(1)

Every vessel over 100 ton shall be provided with an echo sounder. and every vessel shall be provided with at least one hand lead line 15 fathoms in length with lead of at least 3.2 kg weight provided that small vessel plying in shallow waters shall be provided with a depth measuring pole or rod suitably marked.

(2)

Every open vessel shall be provided with at least three oars three row locks and two efficient boat hooks.

(3)

Every vessel shall be provided with atleast two heaving lines.

Chapter - 11.0 Navigation and Communication Equipments

Application- This part shall apply to all vessels

62.

Lights and Shape.

- Every vessel shall be provided with navigation lights and means of making sound signals etc in accordance with Prevention of Collision on National Waterways Regulations, 2002. Vessel shall also be provided with search lights from the bridge.

63.

Communication equipment like compass binoculars wheel indicator bridge engine control PA system mobile shall be provided.

64.

Penalties.

- A breach of any of the rules by the owner master or driver of the vessel shall be punishable with imprisonment for a term which may extend to six months or with fine which may extent to 500 rupees or with both.

Chapter - 12.0 Lights, Sound Signals and Prevention of Collision Steering and Sailing

Part-A 65. Look-Out.

- Every vessel shall at all times maintain a proper look-out by sight and hearing as well as by all available means appropriate in the prevailing circumstances and conditions so as to make a full appraisal of the situation and of the risk of collision. Vessels shall make use of searchlights to locate luminous marks used for channel marking.

66.

Safe Speed.

(1)

Every vessel shall at all times proceed at a safe speed so that she can take proper and effective action to avoid collision and grounding, and be stopped within a distance appropriate to the prevailing circumstances and conditions.

(2)

In determining a safe speed the following factors shall be among those taken into account.

(a)

The state of visibility:

(b)

The traffic density including concentrations of fishing vessel or other vessels.

(c)

The manoeuvrability of the vessel with special reference to stopping distance and turning ability in the prevailing conditions.

(d)

The state of the river, wind, current and the proximity of navigational hazards;

(e)

State and availability of shore navigational aids and channel marking by day and night;

(f)

Speed restrictions imposed by the waterway authority;

(g)

The draught of the vessel in relation to available depth of water; and

(h)

At nights, the presence of background light such as from the shore lights or from the back scatter other own lights.

67.

Risk of collision.

(1)

Every vessel shall use all available means appropriate to the prevailing circumstance and conditions to determine if risk of collision exists. If there is any doubt, such risk shall be deemed to exist.

(2)

In determining if risk of collision exists the following consideration shall be among those taken into account:-

(a)

Such risk shall be deemed to exist if a compass bearing of an approaching vessel does not appreciably change and apparent distance from own vessel decreases;

(b)

Such risk may sometimes exist even when an appreciable bearing change is evident, particularly when approaching a very large vessel or a tow or when approaching a vessel at close range; and

(c)

For vessel not fitted with a compass, if the relative position remains unchanged.

68.

Action to avoid collision.

(1)

Any action taken to avoid collision shall, if the circumstances of the case admit be positive, made in ample time and with due regard to the observance of good seamanship.

(2)

Any alteration of course or speed to avoid collision shall, if the circumstances of the case admit be large enough to be readily apparent to another vessel. A succession of small alterations of course and / or speed should be avoided.

(3)

If there is sufficient room, alteration of course alone may be the most effective action to avoid a close quarters situation provided that it is made in good time, is substantial and does not result in another close quarters situation.

(4)

Action taken to avoid collision with another vessel shall be such as to result in passing at a safe distance the effectiveness of the action shall be carefully checked until the other vessel is finally passed and clear.

(5)

If necessary to avoid collision or allow more time to assess the situation, a vessel shall slacken her speed or take the way off by stopping or reversing her means of propulsion

69.

Narrow channels.

(1)

A vessel proceeding along the course of a narrow channel shall keep as near to the outer limit of the channel which lies on her starboard side as is safe and practicable. A vessel of less than 10 meters in length or a sailing vessel shall not impede the passage of a vessel which can safely navigate only within the marked channel.

(2)

A vessel engaged in fishing shall not impede the passage of any other vessel in the navigable channel;

(3)

A vessel shall not cross a navigable channel if such crossing impedes the passage of vessel proceeding upstream or downstream along the navigable channel;

(4)

A vessel nearing a bend or an area of a narrow channel where other vessels may be obscured by an intervening obstruction shall navigate with particular alertness and caution and shall sound the appropriate signal ;

(5)

Every vessel shall, if the circumstances of the case admit, avoid anchoring in a narrow channel.

When single lane traffic is in force, vessels shall join the lane only when the traffic signal permits to do so. While in the lane, the vessels shall proceed with maximum permissible speed and clear the channels as quickly as possible. Vessels shall not stop or anchor in a traffic lane and shall exercise caution while joining or leaving the single lane to avoid collision with waiting vessels at anchor.

Part- B Conduct of vessels in sight of one another

70.

Sailing vessels.

- When two sailing vessels are in sight of one another or approaching one another so as to involve risk of collision, one of them shall keep out of the way of the other as follows:-

(1)

In a non tidal river when one vessel is proceeding upstream and the other vessel proceeding downstream the vessel proceeding upstream shall keep out of the way of the other;

(2)

When both are proceeding, upstream or downstream and in a tidal lagoon the vessel which is to windward shall keep out of the way of the vessel which is to leeward;

(3)

A vessel which is running free shall keep out of the way of a vessel which is close-hauled; and

(4)

A vessel which is close-hauled on the port tack shall keep out of the way a vessel which is close-hauled on the starboard tack.

(5)

For the purpose of these rules, "upstream" shall be deemed the direction against current and downstream the direction with the current. "Wind ward" side shall be deemed to be the side opposite to that of which the main sail or the largest fore and after sail is carried.

71.

Overtaking.

(1)

Notwithstanding anything contained in these rules any vessel overtaking any other shall keep out of the way of the vessel being overtaken;

(2)

A vessel shall be deemed to be overtaking when coming up with another vessel from a direction more than 22.5 degrees abaft her beam. That is, in such a position with reference to the vessel she is overtaking, that at night she would be able

to see only the stern light / towing light of that vessel but neither of her sidelights; and

(3)

Any subsequent alteration or bearing between two vessels shall not make the overtaking vessel a crossing vessel within the meaning of these rules or relieve her duty of keeping clear of the overtaken vessel until she is finally passed and cleared.

72.

Head-on situation.

- When two mechanically propelled vessels are meeting on reciprocal or nearly reciprocal courses so as to involve risk of collision each shall alter her course to starboard so that each shall pass on the port side of the other.

73.

Crossing situation.

- When two mechanically propelled vessels are crossing so as to involve risk of collision, the vessel which has the other on her own starboard side shall keep out of the way and shall, if the circumstances of the case admit avoid crossing ahead of the vessel.

74.

Action by give-way vessel.

- Every vessel which is directed by these rules to keep out of the way of another vessel shall, so far as possible take early and substantial action to keep well clear.

75.

Action by stand-on vessel.

(1)

(a)

Where by any of these rules one of two vessels is to keep out of the way, the other shall keep her course and speed.

(b)

The latter vessel may however take action to avoid collision by her maneuver alone, as soon as it becomes apparent to her that the vessel required to keep out of the way is not taking appropriate action as required by these rules.

(2)

When from any cause, the vessel required to keep her course and speed finds herself so close that collision cannot be avoided by the action of the give-way vessels alone, she shall take such action as will best aid to avoid collision;

(3)

A vessel which takes action in a crossing situation in accordance with sub paragraph 1 (b) of this rule to avoid collision with another vessel, shall if the circumstances of the case admit, not alter course to port for a vessel on her own port side; and

(4)

These rules do not relieve the give-way vessel of her obligation to keep out of the way.

76.

Responsibilities of (between) vessels.

(1)

A mechanically propelled vessel underway shall keep out of the way of;

(a)

a vessel is not under command;

(b)

a vessel restricted in her ability to maneuver;

(c)

a vessel engaged in fishing;

(d)

a sailing vessel, vessel under oars or country boat; and

(e)

a vessel proceeding downstream by a vessel proceeding upstream, if the prevailing circumstances permit.

(2)

A sailing vessel under way shall keep out of the way of:-

- (a)
a vessel not under command;
- (b)
a vessel restricted in her ability to maneuver; and
- (c)
a vessel engaged in fishing.
- (3)
A vessel engaged in fishing when underway shall, so far as possible, keep out of the way of :-
 - (a)
a vessel not under command; and
 - (b)
a vessel restricted in her ability to maneuver.

Part- C 77. Conduct of vessels in restricted visibility.

- (1)
This rule applies to vessels not in sight of one another when navigation in or near an area of restricted visibility;
- (2)
Every vessel shall make appropriate sound signals in accordance with Rules and exhibit lights while navigating in restricted visibility.
- (3)
Every vessel shall proceed at a safe speed adapted to the prevailing circumstances and conditions of restricted visibility. A mechanically propelled vessel shall have her engines ready for immediate maneuver.
- (4)
Every vessel shall have due regards to the prevailing circumstances and conditions of restricted visibility when complying with the rule of this part.
- (5)
Except where it has been determined that risk of collision does not exist every vessel which hears apparently forward her beam the fog signal at another vessel or which cannot avoid a close-quarters situation which another vessel forward of her beam, shall reduce her speed, she shall if necessary take all her way off and in any event navigable with extreme caution until danger of collision is over.

78.

Lights & Shapes.

- (1)
Provisions in this Rule shall be complied with in all weathers.
- (2)
The rules concerning lights shall be complied with from sunset to sunrise, and during such times no other lights shall be exhibited, except such, lights as cannot be mistaken for the lights specified in these rules, do not impair their visibility or distinctive character, or interfere with the keeping of a proper look- out
- (3)
The lights prescribed by these rules shall, if carried, also be exhibited from sunrise to sunset in restricted visibility and may be exhibited in all other circumstances when it is deemed necessary.
- (4)
The rule concerning shapes shall be complied with by day.
- (5)
The lights and shapes unless otherwise specified in these rules shall comply with the positioning and technical details as per the provisions of Annex-1 to International Regulations for prevention of collision at sea (1972).

79.

Different Lights used in vessels.

- (1)
"Mast head light" a white light placed over the fore and aft centerline of the vessel showing an unbroken light over an arc of the horizon of 225 degree and so fixed as to show the light from right ahead to 22.5 degrees abaft the beam on either side of the vessel. This light shall be placed as far as practicable at height above the hull of not less than 3 meters for

vessels of 20 meters or more in length and 2 meters for vessels of less than 20 meters in length.

(2)

"Sidelights" a green light on the starboard side and a red light on the port side each showing an unbroken light over an arc of the horizon of 112.5 degrees and so fixed as to show the light from right ahead to 22 degrees abaft the beam on its respective side. In a vessel of less than 20 meters in length the sidelights may be combined in one lantern carried the fore and aft centerline of the vessel. Side lights shall be placed not less than 1 meter below the mast head light.

(3)

"Stern light" a white light placed as nearly as practicable at the stern showing an unbroken light over an arc of the horizon of 135 degree and so fixed as to show the light 67.5 degrees from light aft on each side of the vessel.

(4)

"Towing light" an yellow light having the same characters as "Stern light" mentioned in sub section (3) of this rule.

(5)

"All-round light" a light showing an unbroken light over an arc of the horizon of 360 degrees.

(6)

"Flashing light" a light flashing at regular intervals.

80.

Visibility of Lights.

- The lights prescribed in these rules shall be visible at the following minimum ranges:-

(1)

A vessel of 20 meters or more in length, mast head light, 3 miles, Side lights 2 miles, Stern light 2 miles, Towing light 2 miles, all-round light 1mile.

(2)

A vessel less than 20 meters in length, a mast head light 2 miles side light one mile. Stern light 1 mile, white, red, green or yellow all-round light 1 mile. Lights to be exhibited by vessels.

81.

Lights to be exhibited by mechanically propelled vessel under-way. -

(1)

A mechanically propelled vessel under-way shall exhibit:-

(a)

a mast head light forward.

(b)

side lights.

(c)

a stern light.

(2)

A mechanically propelled vessel of less than 10 meters in length in-lieu of the lights prescribed in paragraph (1) may exhibit an all-round white light, and shall if practicable also exhibit side lights or a combined lantern.

82.

Lights to be exhibited by towing & pushing vessels.

(1)

A mechanically propelled vessel when towing or pushing shall exhibit :-

(a)

two mast head lights forward in a vertical line when the length of the tow exceeds 200 meters; There such light in a vertical line. These lights will be in-lieu of light prescribed in rule 81 (1) (a). The lights shall be placed not less than 1 meter apart and the lowest light placed at a height not less than two meters above the hull.

(b)

side lights.

(c)

a stern light.

(d)

A towing light in a vertical line above the stern light.

(2)

When a pushing vessel and a vessel being pushed ahead are connected in a composite unit, they shall be regarded as a mechanically propelled vessel and exhibit the lights prescribed in rule-106.

(3)

A vessel or object being towed shall exhibit:-

(a)

side lights

(b)

a stern light.

Provided that any number of vessels being towed or pushed in a group shall be lighted as one vessel.

(4)

A vessel being pushed ahead, not being part of a composite unit, shall exhibit at the forward end, side lights.

(5)

A vessel being towed aside exhibit a stern light at the forward end side lights.

(6)

Where from any sufficient cause, it is impracticable for vessel or object being towed to exhibit the lights prescribed in this rule, all possible measures shall be taken to light the vessel or the object towed at least to indicate the presence of unlighted vessel or object.

83.

Lights to be exhibited by sailing vessel and vessels under oars.

(1)

A sailing vessel shall exhibit:-

(a)

side lights.

(b)

a stern lights.

(2)

In a sailing vessel of less than 20 meters in length the lights prescribed in paragraph (1) may be combined in one lantern carried at or near the top of the mast where it can be seen.

(3)

A sailing vessel underway may in addition to the lights prescribed in paragraph (1) of this rule, exhibit at or near the top of the mast where they can best be seen two all-round lights in a vertical line, the upper being red and lower be green.

(4)

A sailing vessel less than 10 meters in light, a vessel under oars may exhibit lights prescribed in this rule, but if she does not, she shall have ready at hand an electric torch or lighted lantern showing white light which shall be exhibited in sufficient time to prevent collision.

84.

Lights to be exhibited by fishing vessels.

(1)

A vessel engaged in fishing shall exhibit:-

(a)

two all-round lights in a vertical line the upper being red and the lower white and during a shape consisting of two cones with their apexes together in a vertical line or a basket.

(b)

when making way through the water in addition to the lights prescribed in (a), side lights, and a stern light.

(2)

A vessel less than 10m in length, a vessel under oars may exhibit lantern and shall have ready at hand an electric torch which shall be exhibited in sufficient time to prevent collision.

85.

Lights to be exhibited by vessels not under command or restricted in their ability to maneuver.

(1)

A vessel not under command shall exhibit:-

(a)

two all-round red lights in a vertical where they can best be seen by night.

(b)

two balls or similar shapes in a vertical line by day.

(c)

When making way through the water; side lights and a stem light addition to the lights prescribed in (a).

(2)

A vessel restricted in her ability to maneuver shall exhibit;

(a)

three all- round lights in a vertical line, the highest and lowest of these shall be red and the middle light shall be white.

(b)

Three shapes in a vertical line, the highest and lowest shapes SI be balls and the middle one a diamond.

(c)

when making way through the water, mast head lights, side lights and stern light in addition to the lights prescribed in (a)

(d)

when at anchor, in addition to the lights and shapes prescribed in (a) and (b) above, lights and shapes prescribed in rule 82 for anchored vessels shall also be exhibited.

86.

Lights to be exhibited by vessels engaged in dredging.

- A vessel engaged in dredging, in addition to the lights in Rule 107 (2) shall exhibit; two all - round red lights or two balls in a vertical line to indicate the side on which obstruction exists.

87.

Lights to be exhibited by pilot vessels.

- A vessel engaged on pilotage duty shall exhibit:-

(1)

at or near the mast head two all - round lights in vertical line, the upper one white and the lower one red.

(2)

when under way, in addition side lights and stern light.

88.

Lights to be exhibited by anchored vessels and vessels aground.

(1)

A vessel at an anchor shall exhibit:-

(a)

in the fore part an all-round white light or one ball by day.

(b)

At or near the stern and at a lower level than the light in (a), an all round white light.

(2)

A vessel of less than 20 m in length may exhibit one all-round white light where it can best be seen.

(3)

A vessel aground shall exhibit in addition to the lights prescribed in para (1) or (2), where they can best be seen.

(a)

two all-round red lights in a vertical line,

(b)

three balls in a vertical line by day.

(4)

A vessel less than 10m in length, a vessel under oars may exhibit lantern and shall have ready at hand an electric torch which shall be exhibited in sufficient time to prevent collision.

89.

Lights to be exhibited by hydrofoils & mechanized country crafts.

- Where it is impracticable for a mechanized country craft or a hydrofoil to exhibit lights and shapes of the characteristics

or in positions prescribed in the Rules she shall exhibit lights and shapes as closely similar in characteristics and position as is possible.

90.

Sound Signals.

- The sound signal appliances unless otherwise specified in the Rules shall comply with the technical requirements as per the provisions of Annexure-III of the International Regulations for prevention of collision at sea (1972).

91.

Equipment for sound signals.

- A vessel of 20 meters or more in length shall be provided with a whistle and a bell and a vessel of 100 meters or more in length, in addition shall be provided with a gong.

92.

Maneuvering and warning signals.

(1)

Single vessel when vessels are in-sight of one another a mechanically propelled vessel underway, when maneuvering as authorized or required by these regulations, shall indicate her intentions by the following signals on her whistle.

(a)

One short blast (a blast of about 1 second duration) to indicate.

"I am altering my course to starboard"

(b)

Two short blasts to indicate " I am altering course to port"

(c)

Three short blasts to indicate "I am operating stern propulsion."

(2)

Overtaking vessels

(a)

Two prolonged blasts (blast of about 4 to 6 seconds duration each) followed by one short blast to indicate " I intend to over take you on your starboard side."

(b)

Two prolonged blasts followed by two short blasts to indicate "I intend to over take you on your port side."

(c)

A vessel being overtaken shall indicate her agreement by the following signals or her whistle; one prolonged, one short, one prolonged, one short blast, on that order, if in doubt she may sound signals prescribed in paragraph (3)

(3)

When in doubt - When vessels in sight of one another are approaching each other and from any cause either vessel fails to understand the intentions or actions of the other or is in doubt whether sufficient action is being taken by the other to avoid collision, the vessel in doubt shall immediately indicate such doubt by giving at least 5 short and rapid blasts on the whistle, the signal may be supplemented by a light signal of at least 5 short and rapid flashes.

(4)

At bends - A vessel nearing bend or an area of a channel where other vessels may be obscured, shall sound one prolonged blast, such signal shall be answered with a prolonged blast by any approaching vessel.

93.

Sound signals in restricted visibility.

- In or near an area of restricted visibility, where by day or night, signals prescribed in this rules shall be used as follows:-

(1)

A mechanically propelled vessel making way through the water shall sound at intervals of not more than 2 minutes one prolonged blast.

(2)

A mechanically propelled vessel underway but stopped and making no way through the water shall sound at intervals of not more than 2 minutes two prolonged blasts in succession with an interval of about 2 seconds between them.

(3)

A vessel not under command, a vessel restricted in her ability to maneuver, a vessel constrained by her draught, vessel engaged in towing, fishing or pushing another vessel, shall at intervals of not more than 2 minutes three blasts in succession namely one prolonged followed by two short blasts.

(4)

A vessel at anchor shall at intervals of not more than one minute ring the bell rapidly for about 5 seconds. A vessel at anchor may in addition sound three blasts in succession namely one short, one prolonged and one short blast to give warning on her position, and possibility of collision to any approaching vessels. A vessel aground shall give three separate and distinct strokes on the bell immediately before and after the rapid ringing of the bell.

(5)

A vessel of less than 10 meters in length shall not be obliged to give the above mentioned signals but shall make some other effective sound signal at intervals of not more than 2 minutes.

94.

Distress signals.

- When a vessel is in distress and requires assistance from other vessels or from shore, the following shall be the signals to be used or displayed by her either together or separately.

(1)

a continuous sounding of any sound signal apparatus.

(2)

A flag or a light waved in a circle to draw attention.

(3)

Flares on the deck.

(4)

"May day" transmitted by radio telephony.

(5)

International code of signal N.C. hoisted on the vessel.

95.

Exemptions.

- Any vessel (or class of vessels) whose keel of which is at corresponding stage of construction before the entry into force of these rules may be exempted from compliance therewith of the following provisions until one year after the date of entry into force of these rules.

(1)

The installation of lights with colour specifications and intensity as prescribed in Rule 75 (5).

(2)

Repositioning of masthead lights and side lights on vessels resulting from prescriptions of Rule 76.

(3)

The installation of lights with ranges prescribed in Rule 77.

96.

Application of the provision of Port rules and National Waterway regulations.

- Notwithstanding anything mentioned above, the provision of the Port Rules and Prevention of Collision Regulations, 2002 for National Waterways shall also apply mutatis mutandis, to the mechanically propelled vessels while making voyages within the port limits and National waterways.

Chapter - 13.0 Safety Measures on Water Ways

97.

Carriage of Dangerous Goods.

- No dangerous goods are to be carried on board or transported in the waterways without the specific approval and safety clearance from the competent officer. Provisions of the Merchant Shipping Act 1958 with respect to transporting of dangerous cargo shall be applicable in all classes.

98.

Prevention of Explosions or Fire.

- No explosives shall be brought on board, stored or carried in a vessel without their prior approval and safety clearances from the competent authority and clearances from the Controller of Explosives as required under the

provisions of the Indian Explosive Act 1884.

99.

Prevention and containment of pollution of harbors, ports and waterway by oil / chemical / hazardous cargo etc.

- The provisions of the Merchant Shipping Act 1958, as amended from time to time shall be the guiding criteria from inland vessels and shall be applicable as if under these rules.

100.

Passage through Bridges.

- When a vessel is passing under a bridge, the height of the mast or the height of the collapsed mast and that of the wheelhouse / super structure should be less than that between waterway level and the height of the road bridge. Speed of such vessel should be regulated with reference to prevailing weather conditions and the currents likely to be experienced.

101.

Reduction of speed in certain circumstances.

(1)

every vessel shall regulate their speed to avoid creating excessive wash or suction likely to cause damage to stationary or other moving vessels or structures and bank.

(2)

In particular the vessel shall reduce speed in good time, but without losing the steering way required for safety.

(a)

out side port entrances;

(b)

near vessels made fast to the bank or to a landing stage loading or discharging cargo;

(c)

near vessels lying at normal stopping places.

102.

Drifting of a vessel.

- Drifting of vessel in the inland waterways, unless authorized by the competent Officer, is prohibited.

103.

Crossing of navigable channel.

- While crossing the navigable channel, a ferry vessel shall keep at such distance from vessels or rafts moving along the navigable channel, so that the latter are not obliged to change their course or reduce speed.

Provided that ferry vessels, under special circumstances may be granted priority of passage across the navigable channel by the Competent Officer and such vessel shall exhibit a green all-round light by night and a green flag by day and shall have right of way as the circumstances permit.

104.

Stationary Vessels.

- All stationary vessels, rafts and floating equipment must be anchored or made fast securely enough to withstand the current in such a way that they can adjust to the changes in water level.

105.

Instructions to the Master / Owner.

(1)

Every vessel shall be in charge of a Master who shall be qualified and hold a certificate to that effect under the Rule. The Master shall be severally and conjointly with the Owner shall be responsible for any or all breaches of the rules. Responsibilities of the Master/Owner inter alia include;

(a)

Take all precautions required to exercise vigilance and to avoid damage to the vessel, installations in the waterways and avoid causing obstructions to shipping and navigation;

(b)

To avoid imminent danger, take all steps required by the situation (according to the general practice of seamanship) even if this entails departing from these regulations;

(c)

Be responsible for compliance with the rules or regulations applicable to his vessel and his crew and to the vessels in tow, while his vessel is engaged in towing of other vessels;

(d)

The master/owner shall be responsible for ensuring that the vessel has a valid certificate of survey applicable for the voyage or service in this zone of operation.

(e)

The master/owner shall ensure that the vessel has a valid certificate of registration and that the certificate of registration granted in respect of any vessel shall be used only for the lawful navigation of that vessel;

(f)

The master/owner shall ensure that the crew is sufficient for the type of vessel and type and area of operation as required by the rules.

(g)

The master/owner shall ensure that the crew has valid certificate of competency/service,

(h)

the master/owner shall ensure that dangerous goods or explosive materials are carried on board only as authorized by Competent Authority and procedures and safety precautions as per the Explosives Rules, 1983 are taken for carrying of such goods or material onboard;

(i)

The master shall maintain Ship's Article/crew list, Ships log and Engine Log.

(j)

The master shall ensure that at no time the vessel is overloaded or more than the number of passengers it is certified to carry are taken onboard.

(k)

The owner shall ensure no unauthorized alterations are made to the vessel.

(l)

The master/owner shall ensure that the vessel is adequately equipped to fight any fire and to rescue the passengers and that the crew adequately trained to meet emergent situations.

(m)

The owner/master shall ensure that Life saving devices like life buoys, life jackets, life raft etc as required as per the Rules are provided in each vessel and they are kept in such a position for quick deployment in case of emergency.

(n)

The owner shall ensure insurance of the vessel against third of the vessel against third party risks.

(o)

The owner/master shall display the details showing the date of manufacture of the vessel, date of survey, expiry date of survey, passengers and cargo capacity and such other details as required by law.

(p)

To ensure timely and quality maintenance work.

(q)

To ensure that at no time the vessel discharges in the waterway except at places designated by the Competent Officer, raw sewage, oily substances, garbage etc.

(2)

The master or the person in charge of the vessel shall make immediate report to the nearest competent officer / Police on-

(a)

any vessel has been wrecked, abandoned or materially damaged;

(b)

accidents/ causality involving, death, grievous hurt;

(c)

sighting of any other vessel in distress;

(d)

outbreak of fire or flooding in his vessel;

- (e)
damage caused to any waterway installations or permanent structures;
- (f)
any vessel has caused loss or material damage to any other vessel
- OR
- (g)
Observing uncharted obstruction or failure of navigational aid;
- (h)
falling over board of any object which may become an obstruction or danger to navigation;
- (i)
spillage of oil into the waterway;
- (j)
piracy or theft on board.

(4)
The master shall;

(a)
On sighting a vessel or raft which has suffered an accident endangering persons or the vessel or threatening to obstruct the channel, give immediate assistance to such vessels without endangering safety of his own vessel;

(b)
In case of any marine casualty, give warning to the approaching vessels to enable them to take necessary action in good time steer clear of the channel when in danger of sinking or goes out of control.

(5)
All the crew employed on board a vessel shall be under the control and orders of the master of such vessel, who shall see that proper discipline and good conduct is maintained by them. The crew shall on no account interfere with passengers or behave rudely towards them.

(6)
When the master of a vessel is temporarily absent during a voyage, the Serang on board the vessel shall be held to be in charge with powers and responsibilities of the Master. If such absence of the Master exceeds a day a duly qualified Master shall be appointed immediately and the fact communicated forthwith to the competent authority.

(7)
Master or persons in charge of a vessel shall give the competent officer or any person authorized by him all necessary facilities for verifying compliance with these regulations.

Chapter - 14.0 Miscellaneous

106.

Exemptions.

- Notwithstanding anything contained in these Rules, the traditional country boats engaged in carriage of non dangerous goods/ cargo in bulk irrespective of its length and horse power are exempted from the provision of these Rules and shall be governed by Bihar Model Boat Rules- 2011.

107.

Power for State Government to modify application of rule to certain inland mechanically propelled vessels.

- The State Government may, by notification in the official Gazette, declare that all or any of the provisions of these rules shall not apply in the case of any specified class of mechanically propelled vessels or shall apply to them with such modification as may be specified in the notification.

108.

All fees payable as per these rules can be revised by State Government from time to time.

Chapter - 15.0 Insurance & Penalties

The insurance for mechanically propelled vessels the Chapter VIA of the ACT and for Penalties, the Chapter VII of the act shall be applicable.

I

[Rule 10(3)]

(The State government may by notification change the fees specified in the Schedule)

Fees Payable Under Chapter III

(In Rs.)

(a)

On initial registration, the scale of fees payable will be as follows:-

(i) Vessels up to and including 50 M.T.G.R.T.

1000.00

(ii) Vessels exceeding 50 M.T. up to 100

M.T.G.R.T.

2000.00

(iii) Vessels exceeding 100 M.T. up to 200

M.T.G.R.T.

4000.00

(iv) For every additional 100 M.T.G.R.T. or Part thereof

2000.00

(b)

For registering any Inland Vessel which has been registered under the Merchant Shipping Act, 1958.

2000.00

(c)

Registration a new as directed by the Registering Authority

Full amount of the rates indicated against (a) above

(d)

Registration of alteration to a Vessel

1000.00

(e)

Issue of duplicate certificate

500.00

(f)

Registration as a result of transfer of ownership within the same or different state.

Full amount of the rates indicated against (a) above

(g)

Appeal against the decision of Registering Authority

1000.00

(h)

Supervision fees

(i) Upto Estimated amount cost Rs. 10 lakhs-1% minimum 10000.00

10000.00

(ii) Upto estimated cost amount Rs. 10 lakhs to 40 lakhs (Rs.10000 + 0.5% on amount above Rs. 10 lakhs)

(Rs.10000 + 0.5% on amount above Rs. 10 lakhs)

(iii) Above Rs. 40 lakhs estimated amount

(Rs.25000 + 0.25% on amount above Rs. 40 lakhs)

(Rs.25000 + 0.25% on amount above Rs. 40 lakhs)

II

[See Rule 27]

Syllabus for Examination of First Class Engine Drivers

The written examination shall consist of one paper of three hours duration consisting of the following subjects. Candidate securing forty per cent of the total marks will be deemed to have passed the written test.

1.

Elementary Mathematics:

20 Marks.

(a)

Addition, Subtraction, Multiplication, Division, Decimals and Vulgar Fraction.

(b)

Power and roots of numbers, Ratio and proportion, Percentages, Direct and Inverse Variation, Averages.

(c)

Areas and perimeters of a rectangle, triangle and circle, Volumes and Surface areas of box shaped bodies, cylinders pyramids, cones and spheres, Simpson's first and second rules, to find out the area of water planes and displacement of boats and different draughts in sea/ river/ canal water by Simpson's rules as well as by using area co-efficient and prismatic co-efficient.

(d)

Solutions of simple equation, involving use of given formulae, rearrangement of given formulae.

(e)

To calculate the T.P.I. (Total Pressure Index) in sea water and fresh water.

(f)

To find out the carrying capacity of the boat.

2.

Engineering Knowledge:

20 Marks.

Section-A(General)

(i)

Fundamental Units, (ii) Density and specific density, (iii) Parallelogram of forces, (iv) The Triangle of Forces, (v) Moments and levers, (vi) Parallel forces, (vii) Centre of gravity, (viii) Stress and strain, (ix) Friction, (x) Work, (xi) Temperature scales, (xii) Quantity of heat and specific heat, (xiii) Quantity of Electricity and Farada's Laws of Electrolysis, (xiv) Resistivity, (xv) Ohm's Law, (xvi) The measurement of Resistance by the Ammeter/ Voltmeter method.

Section-B:

Marine Engineering:

40 Marks.

(i)

Working principle of Marine engine.

(ii)

Difference in between Internal Combustion Engine and External combustion Engine.

(iii)

Name of Principal parts of machinery's.

(iv)

Knowledge of what attention is required by the various parts of the machinery, use and maintenance of valves, cocks pipes and connections, and familiar with the various methods of supplying air and fuel to the cylinders;

(v)

Cause of defects and their rectification.

(vi)

Complete overhauling of the Marine Engines.

(vii)

nature of the properties of the various fuel used in internal combustion engines;

(viii)

Precautions against fire and explosions due to oil vapour or gas, flash point. The danger of oil leakage, precautions while bunkering.

(ix)

Construction, operation and maintenance of fire fighting appliances.

(x)

Lay out and working of electric light installation and battery installations.

(xi)

Dry docking including repairs to the propeller, tail shaft rudder and sea connections, stern tubes, shaft brackets.

(xii)

Alignment of Shaft.

(xiii)

Calculations pertaining to speed, consumption of fuel and fresh water for a given voyage.

(xiv)

Arrangements for pumping out bilges.

(xv)

Preparation of defect list.

(xvi)

Utilisation and maintenance of life saving appliances.

(xvii)

Able to draw free hand sketches or machine and engine parts.

(xviii)

Maintaining procedure or engine log book.

3.

Engineering Drawing:

20 Marks.

Use of drawing instruments, reading of blue prints and able to draw the sketches or various parts of the engine.

III

[See Rule 30(3)]

Syllabus for Examination of Inland Vessel Engineers

The written examination shall consist of one paper of three hours duration consisting of the following subjects. Candidate securing forty per cent of the total marks will be deemed to have passed the written test.

1.

Elementary Mathematics:

20 Marks.

(a)

Addition, Subtraction, Multiplication, Division, Decimals and Vulgar Fraction.

(b)

Power and roots of numbers, Ratio and proportion, Percentages, Direct and Inverse Variation, Averages.

(c)

Areas and perimeters of a rectangle, triangle and circle, Volumes and Surface areas of box shaped bodies, cylinders pyramids, cones and spheres, Simpson's first and second rules, practical applications involving use of the above. To find out the area of water planes and displacement of boats at different draughts in sea water and fresh water by Simpson's rules as well as by using area co-efficient and prismatic co-efficient.

(d)

Solutions of simple equation, involving use of given formulae, rearrangement of given formulae.

(e)

To calculate the T.P.I. in sea water and fresh water.

(f)

Difference of draughts when boat moves from sea water to fresh water or vice-versa.

(g)

To find out the carrying capacity of the boat.

2.

Engineering Knowledge:

20 Marks.

Section-A(General)

(i)

Fundamental Units, (ii) Density and specific density, (iii) Parallelogram of forces, (iv) The Triangle of Forces, (v) Moments and levers, (vi) Parallel forces, (vii) Centre of gravity, (viii) Stress and strain, (ix) Friction, (x) Work, (xi) Temperature scales, (xii) Quantity of heat and specific heats (xiii) Quantity of Electricity and Farad's Laws of Electrolysis, (xiv) Resistivity, (xv) a. Ohm's Law,

b. The measurement of resistance by the Ammeter/Voltmeter Method.

Section-B:

Marine Engineering:

40 Marks.

(i)

Principal of working construction operation and maintenance of two stroke and four stroke internal combustion engines (Supercharged and naturally aspirated) used on board ship. with particular reference to starting and reversing arrangements and safety devices.

(ii)

General used and application of various materials used in machinery on board of Inland Vessels.

(iii)

The construction, use and principles involved in the action of pressure gauge, thermometer, pyrometer and other measuring instruments commonly used on boards ships.

(iv)

Construction, operation and maintenance of centrifugal bucket and gear type pumps.

(v)

Lay-out and creation of bilge, ballast and fuel systems.

(vi)

Construction, operation and maintenance of steering gears.

(vii)

Lay out and working of electric light and electric power installation with particular reference to safety devices.

(viii)

Construction and care of starting air vessels including mountings.

(ix)

Construction and operation of refrigerating plant.

(x)

Estimation and fuel, lubricating oil and water consumption for given voyage.

(xi)

Work related to dry docking, including propeller, tail, shaft, rudder, sea connections, stern tube, shaft bracket.

(xii)

Elements of boat construction.

(xiii)

Precautions against fire and explosions due to oil vapour or gas, flash point. The danger of oil leakage precautions while bunkering.

(xiv)

Explosion in crank cases and starting air systems.

(xv)

Construction, operation and maintenance of fire fighting appliances.

(xvi)

Knowledge of statutory requirements concerning safety.

(xvii)

Candidates will be expected to draw free hand sketches of machine and engine parts.

(xviii)

Preparation of defect list and procedure of maintaining engine log book.

(xix)

Use and maintenance of life saving appliances.

3.

Engineering Drawing:

20 Marks.

Use of drawing instruments, reading of blue prints, production of working drawing of machine and engine parts

IV

(Rule 9)

(The State government may by notification change the fees specified in the Schedule)

Sl. N.

Gross Tonnage of Inland Vessels and other descriptions

Fees payable in Rupees

1

Preliminary General Survey Required Fees

(a)

Upto 10 tons

500.00

(b)

Exceeding 10 tons but does not exceed 25 tons

750.00

(c)

Exceeding 25 tons but does not exceed 50 tons

1000.00

(d)

Exceeding 50 tons but does not exceed 75 tons

1500.00

(e)

Exceeding 75 tons but does not exceed 100 tons

2000.00

(f)

Exceeding 100 tons but does not exceed 300 tons

4000.00

(g)

Exceeding 300 tons but does not exceed 600 tons

6000.00

(h)

Exceeding 600 tons for every 300 tons or part
their of

1000.00 extra

(2)

Fee payable for intermediate survey and during
validity of survey certificate or extra survey/inspection- as per
tonnage in item no. 1 above

one extra fee

3

Fee payable for survey on Sunday and other
holidays in additional to ordinary fee chargeable.

one extra fee

- 4
An extra fee chargeable if survey is called upon
to undertake survey after 5.30 p.m. but before 9.00.a.m.
one extra fee
- 5
For change of name of the owner or master or
engine driver for the vessel on the certificate of survey or
license certificate or Authorisation of any person.
500.00
- 6
For extension of survey validity -As per item
no.1
one extra fee
- 7
For registration or enlistment of Builder or
repairer
500.00
- 8
Issue of second copy of certificate or certified
copy of certificate
500.00
- 9
An appeal against the survey certificate or
order or determination of the surveyor.
1000.00
- 10
Fee for dry dock survey - As per tonnage in item
No.-1 above
Three times fee
- 11
The time of the enforcement of survey fees
one year
- 12
For approval of drawing/ plans during
alterations/ repair- 0.05 % of estimated cost minimum Rs. 1000.00
1000.00 each
- 13
For examination and consideration of design
plans/drawing/layout as requested- 0.05 % of tender cost amount.
minimum Rs. 2000.00
2000.00 each
- 14
For witnessing tests of fire extinguishers, life
buys, chains and anchors etc. as requested per visit.
1000.00
Form-I
[See Rule-3(3)]
Application for Survey of an Inland Vessel Under the Inland Vessel Act, 1917
To,
The Director/Chief Surveyor,
Bihar Patna.

I hereby apply to you to make necessary arrangement for the survey of the Inland Vessel whose details are given below on the stated date and place. I have paid to the officer appointed under section 6 of the Inland Vessel Act, 1917 a fee of Rs..... in respect of the survey and additional fee of Rs..... in respect of the expense of the journey of the surveyor.

1. Name of Vessel.....
2. Port of Registry..... Official
No.....
3. Hull where built and when.....
4. Dimension of hull.....
5. Tonnage (i) Registered
- (ii)
Gross
6. Previous survey if any Where/when
7. Nature of Survey
8. Date and time of proposed visit of surveyor.....
9. Place where the vessel will be lying.....
10. Class of certificate required.....
- Station.....
- Date.....
- Signature of owner/Master.

Note. - (1) at least three clear day's notice shall be given in all cases.

(2)
in the case of vessels not previously surveyed, the tonnage may be stated approximately by the applicant and will be determined accurately on survey, fees being levied accordingly.

(3)
No certificate shall be granted till all fees are paid.

Form-2

[See Rule-3(4)]

Appointment of Date and Time of Inspection of the Inland Vessels

To,
The owner or master of Inland Vessel

Sir,

I have to acknowledge receipt of your application for survey of the above Inland Vessel under the Inland Vessels Act, 1917 (1 of 1917) and to acquaint you that I will proceed and board the vessel at.....O'clock on..... day of 20.....

2. I subjoin a list of the requisite preparation for the surveys, which I request may be made before the day and hour above mentioned, so as to prevent loss of my time. Otherwise it will be necessary for me to postpone the survey to some other day.

3. I beg to call attention to the provision of sub-section (2) of section-5 of the Inland Vessel Act, 1917 which is follows:-
"The owner, master and officers of the Inland Vessel shall afford to the surveyor all reasonable facilities for a survey, and all such information respecting the Inland Vessel and her machinery or any part thereof, and all equipment and articles on boards, as he may require for the purposes of a survey."

Yours Sincerely,

Surveyor.

List of the requisite preparation for the survey of an Inland Vessel :-

- (1)
Last survey certificate, if any.
- (2)
Master's certificate.
- (3)

Engineer or engine driver's certificate

(4)

Last passenger certificate

(5)

Pumps to be rigged in their places.

(6)

Spare tiller to be shipped in its place.

(7)

Side lamps, lamp for the mast head light, and lamp for the anchor light to be on deck ready to be put into their places, if necessary.

(8)

Life-buoys to be in readiness.

(9)

Leads and lines to be on deck.

(10)

Fire-hose to be connected and coupled and stretched along the deck. The conductor to be connected.

(11)

Decks, cabins, streerages and all other passenger spaces to be clean and clear and in a fit state for measurement.

(12)

Chain Cables (or a portion thereof) to be on deck.

(13)

A safe and proper ladder for going up and down the holds.

(14)

All pistons sides, pumps etc. to be opened for inspections.

(15)

Fire extinguishers and fire buckets.

(16)

Engine certificate.

(17)

Last insurance certificate.

(18)

Registration certificate if any.

(19)

Line Diagram or drawing of vessel.

Form-3

[See Rule 5(1)]

Surveyor's Declaration Under Section 7 of the Inland Vessel Act, 1917

1. Name of Inland Vessel and official number-

2. Name and address of owner-

3. Tonnage----- Gross/ registered.

4. When and where build and material-

5. Power nominal (Horsepower)-

6. Description of engines and age

Number of cylinder-

Diameter of Cylinders

Stroke of cylinder

7. Condition of hull-

8. General equipment-

Number of fire buckets-

Number of fire extinguishers-

where fitted.

Number of hand pumps -

Number of crew-

9. (a) Name of master-

(b)

Certificate (Class and no.)

10. (a) Name of Engine driver-

(b)

Certificate (class and no.)

11. When and where last examined in dry dock-

12. Limits (if any) beyond which the vessel is not fit to ply-

13. Time, if less than one year for which the hull, boilers, engines or any of the equipments will be sufficient.
for the year ending..... day of.....

14. Dimension of boats, if any-

Length

Breadth

Depth

Cubic

Capacity

(1)

(2)

(3)

15. Number of life buoys.

16. Capacity for carrying passenger----

(a)

First class

(b)

Second class

(c)

Intermediate

Deck passengers

A

B

C

Second Cabin Passengers

Saloon Passengers

When plying by night (smooth and partially
smooth water)

When plying by day (smooth and partially
smooth water)

When plying by day on voyages which do not
last more than six hours (smooth water only)

(i) between decks

(ii) main decks

(iii) upper or bridge

Total

Grand Total

I hereby declare as follows:-

(1)

That on the day of 20.....

I inspected the machinery of the Inland Vessel named in the Space marked columns in this form and all the safety valves and fire-hose on board the same.

(2)

That the machinery of the said Inland Vessel is sufficient for the service intended and is in good condition.

(3)

That the said machinery will in my judgment, be sufficient until the -----day-----of-----

(4)

That the safety valves and fire applications are such and in such conditions as required by the rules under the Act, 1 of 1917.

(5)

That the said vessel as regards to machinery is, in my judgment, fit to ply on the Inland waters of -----

Dated-----the-----day of -----20-----

I further declare as follows viz:-

(1)

That on the day of.....20..... I inspected the hull on the said Inland Vessel and boats, life buoys , lights, signals and other equipments on boards the same, and the certificate of master;

(2)

That the hull of the said Inland Vessel is sufficient for the service intended, and is in good condition;

(3)

That the boats, life buoys, lights and signals and signals on boards the said Inland Vessel and the certificate of the master are such and in such condition required by Act 1 of 1917 and the rules in force on the subject;

(4)

That the hull of the said Inland Vessel and the equipments before named will, in my judgment, be sufficient until the day of.....

(5)

That the said vessel is, in my judgment, fit to ply as an Inland Vessel with the number of passengers stated in the space marked, colmun-16. In this form, when there is no encumbrance of the space measured for the passenger accommodation, but is not fit to ply with a greater number of passenger.

(6)

That the certificate of the engine driver or engineer is such and in such condition as required by aforesaid Act of 1917.

Surveyor.

Form-4

[See Rule- 5(2)]

No.

The..... of.....20.

The Owner Master of the Inland Vessel.

.....

Having surveyed the Inland Vessel in accordance with Inland Vessel Act, 1917, I find the following to be the repairs & required to make good the defects:-

Equipments :-

Engines :-

Others :-

Surveyor of Inland Vessels

Form-5

[See Rule-6 (1)]

Survey of Inland Vessel

No.

The..... of.....20.

The Owner or Master of the Inland Vessel.

.....

.....

.....

Sir,

I hereby give you notice that the Certificate of survey of the above Inland Vessel applied for by..... is ready for delivery, and it will be delivered at the office of the Inland Water Transport at any time during office hours on application and payment of the following sum viz :-

Forfeiture under section 8 (2) of the Inland Vessel Act, 1917 for delay Rs. P. in excess of fourteen days in sending in the declaration, being at the rate of Rs. 510/- per day for days.

:-----

Total :-----

Yours faithfully,

Director/Chief Surveyor, Bihar, Patna

Notes. - These words to be inserted only when any sum is due under Section 8(2) of the said act

Form-6

[See Rule 6(2)]

Certificate of Survey-A

To Remain in Force Only until the Day of.....20

The Inland Vessel..... official no. Bihar..... Port of Registry.

Certificate of Registry No.....

Certificate of Survey No..A/-

Owner, Managing owner, or Agent.....

Port of Survey

Register Tonnage

Gross Tonnage

Name of master and number of his Certificate

Plying Limits:-

Limits beyond which this Vessel is not to ply.

.....

Number of Passengers

This Inland Vessel is, according to the declaration of the Surveyor, fit to carry, when there is no Encumbrance of Passenger Accommodation.

Deck passengers

A

B

C

Second Cabin Passengers

Saloon Passengers

When plying by night (smooth and partially smooth water)

When plying by day (smooth and partially smooth water)

When plying by day on voyages which do not last more than six hours (smooth water only)

(i) between decks

(ii) main decks

(iii) upper or bridge

Total

Grand Total

Two Children under 12 years of age to be reckoned as one passenger.

Encumbrance:-

The space measured for passenger accommodation is occupied by cattle, or by cargo, or other articles.

A.

When plying by night (Smooth and partially smooth water)

Then for every 9 superficial feet of such space
so occupied on the deck or in the cabins
One Passenger

Is to be deducted from the numbers above
stated.

B.

When plying by day (Smooth and partially smooth
water)

Then for every 6 superficial feet of such space
so occupied on the upper or main deck, and for every 9
superficial feet of such space so occupied in the between decks
or in the cabins.

One Passenger

Is to be deducted from the numbers above
stated.

C.

When plying by day on voyages which do not last
more than 6 hours (smooth water only)

Then for every 3 superficial feet of such space
so occupied on the upper or main deck, and every 9 superficial
feet of such space so occupied in the between deck or in the
cabins.

One Passenger

Is to be deducted from the numbers above
stated.

The freeboard of _____ mm was assigned and loading marks placed on the vessel's side, the same is
equivalent to the carriage of a maximum load comprisingtonnes of cargo and/or1..... passengers

Boats, Life Buys, and Equipments

Required to be carried by this vessel.

Boats

Life-buoys and Equipment's

Boat

of the aggregate capacity of
cubic feet

A Fire-Hose capable of being connected with the
engine, and of sufficient length to be used in any part of the
vessel approved fire extinguishers.

(a) Compass

(b) Life-Buys

©© Buoyant

Apparatus

(d) Bilge and Hold

Pump

(e) Fire bucket.

Fit and ready for use

This is to Certify that the provisions of the law with respect to the survey of the above mentioned Inland Vessel and the
Transmission of declaration in respect thereof, have been complied with.

Examined and registered.

Signed by Chief Surveyor, Inland Vessel, Bihar, Patna.

This Certificate, unless previously cancelled or revoked, to be in force until the..... day of20.....

If the vessel is out of place of survey, it must be surveyed and have a new Certificate before it first begins to ply and

after its return or subsequent return to place of survey.

Either this Certificate, or the Duplicate thereof, and copy in the vernacular is to be put up in a conspicuous place or part of the vessel where it will be visible to all persons on board the same.

If the number of passengers carried exceeds the number stated in this Certificate, the Master and Owner shall for every passenger over and above that number be each liable to a fine which may extend to twenty rupees.

In case of any accident occasioning loss of life, or any material damage affecting the seaworthiness or efficiency or the vessel to be either in the hull or in part of the machinery a report by letter, signed by the Owner or Master is to be forwarded to the authorised engineer and ship surveyor. Office at the Inland Water Transport, within 24 hours after the happening of the accident, or as soon thereafter as possible.

N.B.- Any communication address to the above mentioned officer relative to this vessel should state the name, port of place of survey of the vessel and the number of this certificate.

Form-7

[See rule 6(2)]

Certificate of Survey-B

Issued under the Inland Vessel Act 1 of 1917 by the Government of Bihar, for an Inland Vessel Authorised to Ply by Night or Day without Passengers.

To remain in force only until the day of 20....

The Inland Vessel

Official No. Bihar.....

port of Registry.....

Certificate of Registry No.....

Certificate of Survey No..B/-

Owner, Managing Owner, or Agent.....

Port of Survey

Gross Tonnage

Name of Master and Number of his Certificate

Boats, Life-Buoys and

Equipment Required

to be Carried by this

Ship/vessel

Boats (if any)

Life-Buoys and Equipment, etc

-Boats of the aggregate capacity of cubic meter

A fire-Hose capable of being connected with the engine, and of sufficient length to be used in any part of the vessel approved fire Extinguishers.

Compass, Life-Buoys Buoy apparatus Bilge and hold Pump Fire bucket.

Fit and ready for use

This is to Certify that the provisions of the law with respect to the survey of the above mentioned Vessel and the transmission of declaration in respect thereof, have been complied with.

Signed by

Examined and Registered

Chief Surveyor, Inland Vessel,

Bihar, Patna

This Certificate, unless previously cancelled or revoked, to be in force until the day of20..... If the Vessel is out of a place of survey, it must be surveyed and have a new certificate before it first begins to ply after its next subsequent return to a place of survey, either this Certificate or the duplicate thereof, furnished is to be put up in conspicuous part of the vessel, where it will be visible to all persons on board the same.

Case of any accident occasioning lost of life or any material damage affecting the sea worthiness or efficiency of the Vessel, either in the hull or in any part of the machinery, a report by letter, signed by the Owner or Master, is to be

forwarded to the engineer and Ship Surveyor, office of the Inland Water Transport, within 24 hours after the happening of the accident.

N.B. : Any communication addressed to the above mentioned office relative to this vessel should state the name, port of Survey of the Vessel and the number of this Certificate.

Forms-8

[See Rule-7(1)]

Temporary Authorisation Office of the Inland Water Transport, Bihar Patna

No-

/WT

Date: _____ 20

Certificate Valid Upto

in Lieu of Certificate of Survey

MV _____ G.T. _____ on

Bihar _____ is hereby authorised to ply. It is manned by the following Masters/ Serang and Driver. *Other conditions are a provided in the proceeding years certificate of survey.

Master/Serang _____ Class _____ Certificate

No _____ date _____

Emgineer/Driver _____

_____ Class _____ Certificate/Licence

No _____

Date _____ This motor vessels is fit to carry:

When plying by date

Passengers

When plying by Night

Passengers

Chief Surveyor, Inland Vessel,

Bihar, Patna.

Forms-9

(See Rule-9)

Application for Registration of Builder/repairer of Inland Vessels

To,

The Director

Inland Water Transport,

Bihar, Patna

1. Name of Applicant (in full) _____
_____ (details of registration, partners, proprietor to be furnished)

2. Full Address of Applicant _____

3. Full address of workshop/dockyard where manufacturing/repairing is to be carried out

4. Full particulars of dockyard area docking facilities available _____

5. Full particulars of fabrication workshop and machineries/equipment available

6. Particulars of

(a)

qualified personnel/experts _____

(b)

Total work force in the roll _____

7. Fabrication capacity per month in M/T

Bihar Inland Vessels Rules, 2013

8. Previous Manufacturing/repairing work done (in terms of M/T and cost) _____
9. Type of vessels manufactured/repared (Steel, Wood, GRP/FRP) _____
10. Solvency particulars _____
11. Annual turnover during last three years _____

Signature of the Applicant

Forms-10

[(See Rule-10 (1)]

Application for Registration of Inland Vessels Under Section 19d of the Inland Vessels Act, 1917

To,

The Registering Authority,

I/We _____ of

_____ being the owner of an Inland Vessel called _____

hereby request that the said vessel be registered at the port of _____ under the name:

I agree to pay such fees as may be leviable under the Rules, Particulars in respect of the said vessels are as under :-

1. Owners's Name and address (in Full)

2. Occupation _____

3. Name of Master and his certificate No. _____

4. Name of the Port of Registry and No. if previously registered

5. Where, when and how the vessels was secured

6. Kind of vessels, Name and address of the Engine Makers with Horse Power and year of make

Particulars of Engine

9. State of vessel

10. Name and address of the Builders with place and year of build

11. Workshop Owned, if so, Particulars _____

12. Whether owners Adult or Minor _____

Place : _____

Date : _____

(Signature of Owners)

Declaration of Ownership

I/ We _____

_____ subject to the state of _____ residing

permanently at _____ having original place of

business at _____ do hereby declare that

_____ (name) was built at

_____ in the year _____ and was

prepared by me on _____ for rupees _____ and wish to have the same registered in my name at

the port of _____ and that I am the sole owner of the same . I further declare that the vessel is intended to

ply in the port of _____

(Signature of Owner)

6. Made and subscribed the _____

7. day of _____ 20, by the

8. above named _____

9. in the presence of _____

Magistrate/Justice of Peace/(Signature of Registering Authority)

Note. - The Declaration must be Made before a Registering Authority/a Magistrate or Justice of Peace.

Forms-11

Bihar Inland Vessels Rules, 2013

[(See Rule-12(1))]

To,

The Owner/Master on the Inland Vessel

Sir/Madam,

In acknowledging receipt of your application for registration of the vessel named above under Inland Vessel Act, 1917 (1 of 1917) this to state that Registering Authority/ Surveyor shall proceed on board the vessel at _____ hours on _____ day of _____, 20

You are requested to afford to the Registering Authority/Surveyor all reasonable facilities for the registration of the Inland Vessel and all such information respecting the vessel as he may require for the purpose of registration.

Yours faithfully

Registering Authority.

Inland Vessel, Bihar.

Form - 12

[(See Rule-14(1))]

(Certificate of Registration)

of Inland Vessel under Section 19-F of the Inland Vessel Act, 1917 (1 of 1917) Official No _____ No. Year _____
and _____ Port _____ of _____ Registry _____

_____ This is
to Certify that _____ of _____ has declared
that _____ subject of the State of _____ and the sole owner of _____ called
_____ and that the _____ said _____ was built at
_____ by _____ of _____ in the year _____

The said _____ had been duly registered at the port of _____ under the Inland Steam Vessel Act, 1917.
Certified _____ under my hand this _____ day of _____ 20

Description of Engines

Name and address of makers _____ When made
_____ No. of sets of engines _____ No. of Shafts
_____ N.H.P. _____ B.H.P. _____ I.H.P. _____ Type

of Engine Estimated speed of ship/Vessel _____

Reciprocating engines : No. and diameter of cylinders in each set _____ Length of stroke: _____

Rotary Engine:- No. of cylinders in each set _____

Particulars of Vessels and Tonnage

Metre/centemeter

Category

Extreme Length

No of

Decks

Length

No of

Bulkheads

Breadth _____

Build and Material _____

Depth

Stem _____

Description

Gross Tonnes

Registered Tonnes

Registering Authority

Foot note. -

1. This certificate of registration to be produced for inspection on demand by any authorised by the State Government.
2. This certificate must be surrendered to the Registering Authority if so required by him.
3. While the certificate is in force, the vessel's name and registration mark as painted or otherwise marked in position approved by the government of Bihar must not be removed or denied.
4. In case of any accident occasioning loss of the life, or efficiency of the vessel, either in the hull OR in any part of machinery, a report by letter signed by the owner or master, is to be forwarded to the Registering Authority, Port of _____ within 24 hours after the happening of the accident or as soon thereafter as possible.

Form-13

[(See Rule-14(2))]

(Temporary Registration Pass)

(In Lieu of Certificate of Registration)

To Remain in Force only Until the _____ Day of _____ 20

At _____ his _____ is _____ to _____ certify that Sri/Smt _____ of _____ is / are the owner/owners of the Inland Vessel official No. _____ having principal dimension _____ length _____ Breadth _____ depth _____ and _____ GRT

The registration certificate of the said vessel is under preparation in the port of _____ as per Inland Vessel Act, 1917.

Registering Authority

Form-14

(See Rule-15)

(Book of Registration)

Registration Mark _____

No. Year and Port of Registry _____

Name of Vessel _____

Name of the Owner _____

Address of owner _____

Description of Inland Vessel

Passenger of Non passenger _____

1. (a) Category _____

(b)

Gross Tonnage _____

(c)

Registered Tonnage _____

Particular of Vessels

2.

(a)

Length overall _____

(b)

Breadth Extreme _____

(c)

Depth of underside of deck amid ships, at side _____

(d)

Builder Name and Address _____

(e)

Year of Built _____

(f)

Hull is of wood, steel etc. _____

(g)
No. of decks _____

(h)
Description _____

(i)
No. of Bulkheads _____

Transaction

Name of person from whom title is derived

Registry

No. of Shares affected

Date of and hour of

Engine No.

3.

(a)
Internal combustion engine _____

(b)
Description _____

(c)
No. of sets _____

(d)
Made by _____

(e)
Year of Make _____

(f)
Surface, jet or Non condensing _____

(g)
No. of cylinders per set _____

(h)
Diameter of cylinder in inches _____

(i)
Stroke in inches _____

(j)
N.H.P. _____ B.H.P. _____ I.H.P. _____

Propulsion

4. Single, twin screw, side quarter or stem peddle etc. _____ Revolution per minute
_____ propulsion geared or direct driven _____ speed of vessel _____

Registering Authority

Date _____

Subsequent to Registration

Nature & Date of transaction

Name, Residence and occupation

Number of transaction of Transferee Mortgagee or other person acquiring title or power

Form-15

[(See Rule-16(2))]

Application for Registration or Alteration/issue of a Fresh Certificate of Reg. Under Sub-Section(2) of Section 9-J of the Inland Vessel Act, 1917.

To,

The Registering Authority,

Sir,

I _____ Being the owner of so inland

Bihar Inland Vessels Rules, 2013

vessel _____ (name) bearing no. _____ hereby beg to report that the following alterations have been carried out on the vessel no. _____. I therefore, apply for registering the alterations/for the issue of a fresh Registration Certificate. I enclose herewith a duplicate copy of treasury challan showing the deposit of the necessary fees. I also enclose herewith the original certificate of Registration.

Date _____

(Signature of the Owner)

Engine Name of vessel _____ Type of Engine _____ No. of sets of Engine _____

Year of Make _____ Name and address of Builder _____

No. of Shafts _____

No. of Cylinders _____

Diameter of Cylinders (in Inches) _____

B.H.P./N.H.P. _____

Surface, Jet or Non-condensing _____

Revolution per minute _____

I hereby certify that the above particulars are true as per official records.

Date _____

(Signature of the Owner)

Form-16

(See Rule-17)

Application for Transfer of Registry

To,

Registering Authority

I, _____ of _____ being the owner of an Inland Vessel No. _____ hereby request that the registry of the said vessel may kindly be transferred from your register to the register of the Registering Authority of _____ in the state of _____. The certificate of registration is enclosed here with/The certificate of registration will be forwarded to the Registering Authority of _____ on demand.

Treasury Challan for Rs. _____ is also enclosed.

Place _____

Date _____

(Signature of Owner)

Form-17

(See Rule-18)

Deed of Sale

I/We _____ of _____ in consideration as the sum of Rupees _____ paid to me/us by _____ of _____ the receipt whereof is hereby acknowledged, transfer the ownership of the Inland Vessel particularly described below and in more details in the certificate of registration and the Registration Book together with appurtenances to the said Inland/Vessel _____.

Name of the Inland Vessel	_____	Official
Number _____	Port of registry _____	How
propelled _____		Length
_____ Breadth _____ Depth _____		Gross
Tonnes _____ Registered	Tonnes _____	Description of
engine _____		

2. Further, I/We _____ hereby declare that the said Inland Vessel is free from/has the following encumbrances:

_____ In witness where of I/We have here up to
subscribed my/our name this _____ day of _____ executed

by _____ In the presence of _____

Note. - The deed must be executed before a Registering Authority and shall bear an adhesive of impressed stamp of not less than the amount prescribed in Schedule I to the Indian Stamp Act, 1899.

Form-18

(See Rule- 19)

Application for Transfer of Ownership

To,

The Registering Authority.

I/ We..... forwarded herewith the certificate of Registration of Inland Vessel name.....No. H.P..... the ownership of which has been transferred to me/us by..... and hereby request that the said Inland Vessel may be registered in my/our name and the Certificate of Registration amended accordingly. The order of the government ofsanctioning the transfer is also enclosed.

Dated: -.....

(Signature of Transferee)

I/ We hereby certify that I/ We have transferred the ownership of the above mentioned

Vessel, to

(Signature of Transferee)

Form-19

[See Rule 19 (1)]

Intimation of Loss, Destruction or Mutilation of the Certificate of Registry and Application for Duplicate

To,

The Registering Authority,

The Certificate of Registration of my Inland Vessel, the..... registration mark of which is has been lost/ destroyed/ mutilated/ in the following circumstances.....

The mutilated certificate is attached hereto.

I hereby declare that to my knowledge the registration of the vessel has not been either suspended or cancelled under any of the provisions of the Act or Rules made thereunder and I herewith deposit the fee of Rs. and apply for the issue of a duplicate Certificate of Registration.

Date

(Signature of Applicant)

Address.....

Form-20

[See Rule 23(2)]

Application for Certificate of Competency to Act as Engineer/ Engine Driver/ Serang/ Master of an Inland Mechanically Propelled Vessel Plying in the State of Bihar

Note. - The applicant shall submit this form duly filled in along with the necessary certificates for permission to appear at the examination to the examination Centre, Bihar, Patna.

Part-A

Personal particulars

(1) Name in full :-(2) Surname :-(3) Nationality :-(4) Permanent Address :-

Passport size photograph of the

(5)

Date of birth :-

(6)

Place of birth :-

Part-B

Particulars of all previous certificate (if any)

(1)

Number :-

(2)

Competency of service :-

(3)

Grade :-

(4)

Where issued :-

(5)

Date of issue :-

(6)

If at any time suspended or cancelled by court or authority.....

(7)

Date. :-

(8)

Cause :-

Part-C

Certificate now required

(1)

Grade :-

(2)

Competency :-

Part-D

Have Your Appeared for this Examination Earlier?Yes/No.

If Yes mention year.

Part-E

Declaration to be made by applicant:

N.B. Any person who make, procures to be made or assists in making any false representation for the purpose of obtaining for himself, or any other person, a certificate either or competency or service, is for each offence liable to be punished for cheating under Section 420 of the Indian Penal Code and also for knowingly giving false information to the public servant under section 182 of the Indian Penal Code, of 1860.

Declaration

I do hereby declare that the particulars contained in Part A,B,C,D & E of this form are correct and true to the best of my knowledge and belief, and that the papers enumerated in Part-G and send with this form are true and genuine documents, given and signed by the persons whose names appear on them, I further declare that the statement in Part-G contains a true and correct account of the whole of my services without exception.

And I make this declaration conscientiously believing the same to be true, signed in the Presence of the Director/ Chief Examination, Bihar, Patna.

Date.....

Signature of the Applicant

Present Address....

.....

Part-F

Certificate of the Inland Water Transport Bihar, Patna.

The declaration under Part-E above was signed in my presence and the fee of Rs..... received.

Date: -

Director Inland Transport

Bihar, Patna.

Part-G List of Testimonials and Statement of Service on Rivers or Shore or Sea

1. If served on board ship

(i)

No. of testimonials/ certificates (if any :-

(ii)

Name of ship where employed :-

(iii)

Horse power of the engine on which worked :-

(iv)

Port of registry and official no. of the ship :-

2. Service particulars of the Applicant :

(i)

Capacity :-

(ii)

Date of appointment

(iii)

Date of termination/leaving

(iv)

State if continuing

(v)

Total period served

(a)

Years :

(b)

Months:

©© Days :

(vi)

Total service

(vii)

Total service on shore/river:

(viii)

Period served for which certificates are now produced:-

(ix)

Period served for which no certificates are produced :-

Part-H Certificate of the Examiner

Note. - The examiner should fill up Part-H and I and forward this form to the Director Inland Water Transport along with the testimonials and other certificates, if any, with this form, the new certificates and the testimonials of the applicant shall be delivered to him at the office of the Inland Water Transport Bihar, Patna.

1. Date and place of examination

2. Insert passed or failed against each item below:

(i)

In working out the questions:

(ii)

In the viva examination:

3. Rank for which passed:

Part-I Personal Description of Applicant

1.

Height:

Meters

Centimeters

2.

Complexion:

3.

Personal marks or peculiarities, if any,

4.

Colour of

(a) Hair:-

(b) Eyes :-

I hereby certify that the particulars contained in Part-H and Part-I are correct.

Date.....

Place.....

Name and signature of examiner

Form-21

(See Rule 34)

Certificate of Competency to Act as an Engineer of an Inland Vessel.

To,

Whereas it has been recommended by the examiner appointed under Section 21 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualified to act as Inland Vessel Engineer of an Inland mechanically propelled vessel under the said Act, I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency to act as an ENGINEER of an Inland Vessel.

Given under my hand and Seal

Director Inland Transport,

Bihar, Patna.

The..... day of.....

No. of certificate.....

Address of Certificate holder.....

Date and place of birth

Signature.....

Issue at..... on the date.....

Valid till.....

Registered.....

Inland Water Transport

Bihar Patna.

Note. - (1) Any Engineer of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the certificate holder who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport, Bihar, Patna.

Form-22

(See Rules 34)

Certificate of Competency to Act as First Class Engine Driver of an Inland Vessel.

To,

Whereas it has been recommended by the examiner appointed under Section 21 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualify, to Act as first class engine/ driver of an Inland Mechanical propelled vessel. I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency to act as First Class Engine Driver of an Inland Vessel.

Director Inland Water Transport,

Bihar, Patna.

The..... day of.....

No. of certificate..... as First Class Engine Driver of an Inland Vessel bearer..... son of

Date and place of birth(showing village, thane and district).....

Residence (showing village, thane and district).....

Personal description stating particularly permanent marks or scares.....

Height..... date of examination.....

Number of Register Ticket.....

Signature.....

Issued at..... on the..... date of.....

Valid till....

Registered.....

Inland Water Transport,

Bihar, Patna.

Note. - (1) Any First Class Engine Driver of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the holder of this certificate who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport, Bihar, Patna.

Form-23

(See Rule 34)

Certificate of Competency as Second Class Engine Driver of an Inland Vessel Under Act 1 of 1917

To,

Whereas it has been recommended by the examiner appointed under Section 21 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualify, to Act as Second Class Engine Driver of an Inland Mechanical propelled vessel. I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency as Second Class Engine Driver of an Inland Vessel.

Given under my hand and seal.

Inland Water Transport

Bihar, Patna.

The..... day of..... No..... of certificate..... as Second Class Engine Driver of an inland vessel bearer..... son of..... .. date and place of birth (showing village, thane and district)..... Residence (showing village, thane and district).....

Personal description stating particularly and permanent marks or scares..... Height..... date of examination..... Number of Register ticket.....

Signature.....

Issued at..... on the..... date of

Valid till....

Registered.....

Inland Water Transport

Bihar, Patna.

Note. - (1) Any Second Class Engine Driver of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the holder of this certificate who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport Bihar, Patna.

Form-24

(See Rule 34)

Certificate of Competency to Act as First Class Master of an Inland Vessel.

To,

Whereas it has been recommended by the examiner appointed under Section 20 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualified to act as 1st class master of an Inland mechanically propelled vessel

under the said Act, I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency to act as an First Class Master of an Inland Vessel.

Given under my hand and Seal

Inland Water Transport,

Bihar, Patna.

The..... day of.....

No. of certificate.....

Address of Certificate holder.....

Date and place of birth

Signature.....

Issue at..... on the date.....

Valid till....

Registered.....

Inland Water Transport,

Bihar Patna.

Note. - (1) Any 1st class master of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the certificate holder who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport, Bihar, Patna.

Form-25

(See Rules 34)

Certificate of Competency to Act as Second Class Master of an Inland Vessel.

To,

Whereas it has been recommended by the examiner appointed under Section 21 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualify, to Act as second class master of an Inland Mechanical propelled vessel. I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency to act as second class master of an Inland Vessel..

Inland Water Transport,

Bihar, Patna.

The..... day of.....

No. of certificate..... as Second Class Master of an Inland Vessel
bearer..... son of

Date and place of birth(showing village, thane and district).....

Residence (showing village, thane and district).....

Personal description stating particularly permanent marks or scares.....

Height..... date of examination.....

Number of Register Ticket.....

Signature.....

Issued at..... on the..... date of.....

Valid till....

Registered.....

Inland Water Transport,

Bihar, Patna.

Note. - (1) Any Second Class Master of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the holder of this certificate who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport, Bihar, Patna.

Form-26

(See Rule 34)

Certificate of Competency as Serang of an Inland Vessel Under Act 1 of 1917

To,

Whereas it has been recommended by the examiner appointed under Section 21 of the Inland Vessel Act, 1917 that you have been found, after examination, duly qualify, to Act as Serang/ B of an Inland Mechanical propelled vessel having engines of less than 226 Brake Horse Power (226 B.H.P.) I do hereby, in pursuance of Section 21 of the said Act, grant you this certificate of competency as Serang of an Inland Vessel to ply in the State of Bihar. Given under my hand and seal.

Inland Water Transport

Bihar, Patna.

The..... day of.....

No..... of certificate..... as Serang of an inland vessel bearer..... son of..... .. by caste

.....date and place of birth (showing village, thane and district).....

..... Residence (showing village, thane and district).....

Personal description stating particularly and permanent marks or scars..... Height..... date of examination..... Number of Register ticket.....

Signature.....

Issued at..... on the..... date of

Valid till....

Registered.....

Inland Water Transport

Bihar, Patna.

Note. - (1) Any Serang of an Inland Vessel who fails to handover the certificate which has been cancelled or suspended is liable to penalty upto Rs. 1000/- (Rupees one thousand).

(2)

Any person other than the holder of this certificate who comes in possession of this certificate is required to transmit it forthwith to the Inland Water Transport, Bihar, Patna.

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Translation